

Present:

Mr. Justice Md. Mostafizur Rahman
with
Mr. Justice S.M. Masud Hossain Dolon

Death Reference No.27 of 2017

The State

..... Petitioner

-Versus-

Md. Masud Rana @ Mamun @ Mantri and
others

... Condemned-prisoners.

Criminal Appeal No.2720 of 2017

Md. Masud Rana alias Mamun alias Mantri

-versus-

The State

with

Criminal Appeal No. 2750 of 2017

Md. Isahaque Ali

-versus-

The State

with

Jail Appeal No.110 of 2017

Md. Masud Rana @ Mamun @Mantri

with

Jail Appeal No.111 of 2017

Md. Sakhawat Hossain @ Shafique

with

Jail Appeal No. 112 of 2017

Md. Liton Miah

with

Jail Appeal No. 113 of 2017

Md. Isahaque Ali

Mr. Sk. Mohammad Morshed, Additional
Attorney General with
Mr. Md. Boshir Ahmed, Deputy Attorney
General with

Mr. Md. Zakir Hossain Masud, Assistant
Attorney General with
Mr. Mohammed Rezaul Hoque, Assistant
Attorney General with
Mr. A. Monnan (Manna), Assistant
Attorney General with
Mr. Md. Shafour Rahman Siddque
Assistant Attorney General
..... for the State.

Mr. Md. Ahsanullah, advocate with
Mr. Mohammad Shamsul Islam, advocate
..... for the appellant
(in Criminal Appeal No. 2720 of 2017, 2750 of 2017 and Jail
Appeal No. 113 of 2017)

Mr. Sk. Faruque Hossain, advocate
..... State Defence lawyer.
(in Jail Appeal No. 111 of 2007, Jail Appeal 112 of 2007)

Judgment on 21.09.2022

S.M. Masud Hossain Dolon, J:

The learned Special Sessions Judge, Rangpur has made this reference under section 374 of the Code of Criminal Procedure (the Code). Condemned prisoner namely (1) Md. Masud Rana @ Mamun @ Mantari, son of Md. Abdul Malek, (2) Md. Sakhawat Hossain @ Shafique, son of A.Razzak, and (3) absconding accused person Md. Ahsan Ullah Ansari @ Biplob, son of Md. A. Hamid Ansari were convicted under section 302/34 of the Penal Code and other condemned prisoner namely (4) Md. Isahaque Ali, son of Mayez Uddin and (5) Md.

Liton Mia @ Rafique, son of Md. Ismail Hossain were convicted under section 302/109 of the Penal Code. They faced the trial before the Special Sessions Judge, Rangpur in Sessions Case No. 982 of 2016 arising out of G.R. No. 201 of 2015 (Kaunia) corresponding to Kaunia Police Station Case No. 04 dated 03.10.2015. The Special Sessions Judge, Rangpur sentenced them to death with a fine of Taka 20,000/- (twenty thousand) each by his judgment and order dated 28.02.2017.

Against the aforesaid judgment and order of conviction and sentence, condemned prisoners preferred the above stated criminal appeals and jail appeals. Since criminal appeals, Jail appeals and reference have arisen out of same judgment and order have been heard together and are being disposed of by this Judgment.

The prosecution case, in short, inter alia is that deceased Hoshi Kunio was a Japanese national. He came to Bangladesh on 28.08.2015. Hoshi Kunio and a local man Md. Humayun Kabir Hira jointly took lease for quantum of 2.8 acres land at Kachu Alutari village of Sarai Union under Kaunia Police Station of district Rangpur from one Shahjahan. They started growing grass on the rented land before 5 or 6 months of the

occurrence. The deceased Hoshi Kunio came out of his farm and started toward by a rickshaw of one Monnaf Mia at about 9.00 am on 03.10.2015. The rickshaw entered into the Kachu Alutari village through Kutcha road at about 9.50 am or 10.00 am. While his rickshaw approached the house of Md. Nurul Haque, two unknown assailants suddenly appeared near the rickshaw and one of them fired a gunshot at the chest and right hand of Hoshi Kunio. He fell down on the ground and the miscreants shot him once again. Thereafter, the assailants fled away to north by a red color motor cycle which was kept started on pucca road. People from surrounding areas rushed to place of occurrence in aid and they rescued Hoshi Kunio and brought him to Rangpur Medical College and Hospital. The doctor on duty at hospital declared him dead on arrival. Md. Rezaul Karim, officer-in-charge of Kaunia Police Station having received an information from the local Chairman went to the place of occurrence. He came to know that 3 unknown assailants in connivance with each other and in pursuance of a conspiracy with some other unknown persons killed Hoshi Kunio. Thereafter, he lodged a first information report (FIR) with Kaunia police station, Rangpur.

After completion of investigation, Charge Sheet No. 123 dated 03.07.2016 was submitted against the convict-appellants under sections 302/34/109 of the Penal Code. The learned Senior Judicial Magistrate took cognizance of the offence and after making the case ready for trial, sent it to Court of Sessions Judge, Rangpur for trial. The learned Sessions Judge, transferred the case to Court of Special Sessions Judge, Rangpur, who framed charge against the condemned-prisoners and other convict-appellants under sections 302/34/109 of the Penal Code. Charges so framed were duly read over and explained to the accused who were present in the Court to which they pleaded not guilty and claimed to be tried. The absconding accused were tried in absentia.

During the course of trial 55 prosecution witnesses (pws) were examined who gave evidence in-chief in support of the charges as brought against the accused-Appellant. The defence/Appellant is examined the PWs under cross-examination.

After closing of evidence of prosecution witnesses, the accused-Appellants were examined by the learned trial Judge below under section 342 of the Code of Criminal Procedure. In

their examination, they expressed their desire to examine defence witness. Accordingly, one D.W was examined in chief who was also examined by prosecution under cross-examination.

Defence case, as it transpires from the trend of cross examinations of the prosecution witnesses and (DW-1) evidence is that they are totally innocent. They did not commit the offence and they were falsely implicated in this case.

The learned Special Sessions Judge after scrutinizing oral and documentary evidence led by prosecution in support of the charges framed against Appellants passed impugned Judgment and order and convicting them under sections 302/34/109 of the Penal Code and sentencing them to suffer death with a fine of taka 20,000/- (twenty thousand) each. After passing the judgment, learned Special Sessions Judge submitted the reference to this Court for confirmation of sentence of death. Whereas, Convict-Appellants preferred these Criminal Appeals against their conviction and sentence.

P.W. 1 Md. Rezaul Karim is informant and officer-in-charge of kaunia police station. He testified that Chairman of Sarai Union Parishad informed him over mobile phone at about

10.15 in the morning on 03.10.2015 that one Japanese national was gunned down at kachu Alutari village. He informed the matter to his higher authority and entered the information in GD being No. 123 dated 03.10.2015. He, thereafter rushed to the place of occurrence with his force. He came to know from Abdullah, rickshaw puller Monnaf and people present there that a Japanese national namely, Mr. Hoshi Kunio and a local man Humayun Kabir Hira jointly took lease of 2.8 acres land at kachu Alutari village of Sarai Union from one Shahjahan and started cultivating foreign Neperion grass. Hoshi Kunio used to go to grass farm by motor cycle of Humayun Kabir. Mr. Hoshi Kunio, also used to go to the farm by rickshaw. On 03.10.2015 at about 9.00 in the morning he started from his residence for Kachu Alutari village by a rickshaw of Monnaf and at about 9.50 to 10.05 am his rickshaw reached at Kachu Alutari village bound Kancha road. While his rickshaw reached in front of house of one Md. Nurul Haque, two unknown miscreants appeared near Rickshaw suddenly from the south side and one of them brought out a firearm from his waist and shot on the chest and right hand of Hoshi Kunio. Then Hoshi Kunio fell down on the ground from rickshaw and at this point of time the miscreants

shot at him once again. Thereafter, the miscreants went to pucca road and hurriedly ran away to north by a red colour motor cycle. The motor cycle was kept on steam before their arrival. Having heard the sound of gunshot, people from surrounding areas rushed to the place of occurrence. They rescued injured Hoshi Kunio and brought him to Rangpur Medical College and Hospital. Doctor on duty at the hospital declared him dead on arrival. It was initially known that full name of Japanese national was Mr. Hoshi Kunio having his passport no. Tk. 1259552 Type B issued from Japan. He came to Bangladesh on 23.12.2011 for the first time. It is further known that Golam Jakaria Bala of Munshipara in Rangpur town lived in Japan and his brothers namely Jakaria Jamil Milon, Akter Jamal Mission and Shipon have been living in Japan for last 20 years. They met with Hoshi Kunio in Japan and a good relation was built up among them. For that reason Hoshi Kunio lived in the house of Jakaria Bala at Munshipara, Rangpur. Nobody informed local concerned authority about the matter. Hoshi Kunio was introduced to Md. Humayun Kabir Hira through Akter Jamil Mission and Mr. Hoshi Kunio started cultivating grass in joint venture with Humayun Kabir Hira. Hoshi Kunio hired a rickshaw

of Monnaf at the rate of 200 taka per day to go to his farm and also to take him back to home. It is further known on query of people present there that three unknown miscreants in pursuance of a conspiracy which they carried out in connivance with some other unknown persons killed Hoshi Kunio. The informant, thereafter lodged the FIR.

In Cross examination P.W.1 stated that he was not present at time of occurrence. He received the information over a mobile phone from U.P Chairman at about 10.15 am. He did not know whether U.P Chairman saw the occurrence. P.W. 1 also denied the defence suggestions that the case was false and that he falsely deposed in the case.

P.W. 2, Md. Ashraful Islam is Chairman of Sarai Union Parishad. He testified to have got an information from U.P member Abul Khayer at about 10.10 am on 03.10.2015 that a Japanese national had been shot in front of house of Nurul Haque at Kachu Alutari village. Babu son of Nurul Haque also informed him the occurrence over mobile phone. He in turn informed the matter to officer-in-charge of Kaunia Police Station then and there over mobile phone. He himself went to the place of occurrence. He saw blood on the road in front of

house of Nurul Haque. He saw a Rickshaw puller to narrate the occurrence to people present there. He also heard the occurrence from rickshaw puller. He (Rickshaw puller) stated that two unknown assailants suddenly appeared in front of the rickshaw and brought out a fire arm from their waist and shot at Japanese national in front of house of Nurul Haque. The rickshaw puller being frightened ran to east. At that time, Murad son of Nurul Haque was coming from East. Another fire was shot at that time. Murad and rickshaw puller came forward and the miscreants went away through pucca road and fled away by a motor cycle which was kept on ignition before their arrival. Rickshaw puller showed him a visiting card of Humayun Kabir Hira and told him that Humayun Kabir Hira asked him to inform him in case of any danger. Police came at the spot. Meanwhile, local people had already taken the injured person to hospital. Police recovered and seized 3 fired cartridges, blood stained earth, 2 sacks made of jute and plastic and a piece of blood stained cloth and also seized the rickshaw, visiting card and prepared two seizure lists on the spot. One bullet was recovered and seized on 11.10.2015 from the place of occurrence which was found one inch inside the earth. He

singed the seizure lists. While deposing, he proved the seizure list which were marked as Exhibits-2,3,4. He also proved seized articles before the court.

In cross examination PW2 stated that he did not see the occurrence.

P.W. 3, Md. Aminul Islam testified that his house is $\frac{3}{4}$ hundred yards away from the place of occurrence. He was in his house. He, having heard the fact of dacoity went to the place of occurrence. He saw Hoshi Kunio, a Japanese national lying on the ground. He brought him at Satmatha by an auto and from there he carried him to hospital by a pick up. Mostafa, Ramjan and Hira were with him. The doctor declared him dead in hospital. He heard that two men shot at him and fled away by a motor cycle.

The defence declined to cross examine him.

P.W. 4, Most. Anowara Begum testified that she at the relevant time was grazing her goat beside the house of Ashraful at material point of time. Two men came and sat in paddy field for a while and went to pucca road. While she was going home after keeping the goat tied in field, she heard a sound from her

behind. She turned around and saw the said two men running to the pucca road. She went to the place of occurrence and saw a man lying on road. One of the two men was dressed with white shirt while another with black shirt with short beard. The man who was gunned down was a foreigner. His body was covered with blood and he was groaning. Aminul and Sahidar took away the wounded man by auto. One of the two men who fled away was short and another was tall.

During cross examination by defence, she stated that she could not say exactly whether those two men out of five were present on the dock.

During examination in cross on behalf of other accused she stated that she heard the sound of firing from a distance. She did not know the accused standing on the dock earlier.

P.W. 5, Md. Mostafa Hossain stated that the place of occurrence was in front of house of Murad. He went there and saw people running away. He also saw a Japanese man was lying on the ground. He and Aminul took the man to Satmatha by auto and from there to hospital by a pickup. Afterwards, he heard that man was wounded and died due to gunshot. The defence declined to cross examine him.

P.W. 6, Md. Sahidar Rahman testified that he went in front of house of Murad and saw an injured foreigner with gunshot injury. The injured person made a sign and uttered the word “medical”. He, Mostafa and Aminul brought the injured person to Satmatha by an auto and from there they brought him to hospital by a pickup. He also heard that three persons shot him dead. The defence declined to cross examine him.

P.W. 7, Md. Swadhin Mia testified that he was standing with his auto at Kachu Alutari intersection in the morning on 03.10.2015. He heard that a Japanese national was shot. He went there. People present there took him to Satmatha by his auto and from there he was brought to hospital by a pickup. The defence declined to cross examine him.

P.W. 8, Md. Maidul Islam alias Murad testified that occurrence took place in the morning on 03.10.2010 on the road in front of his house at Alutari village. He was grazing his cow a little far. He heard a sound of firing. He saw Monnaf, a rickshaw puller was running away and also saw a man lying on the ground with bleeding injury. There was a motor cycle kept on steam on the road. Three persons fled away with that motor cycle. He and Monnaf raised alarm. On their alarm, many

people came there. Monnaf asked him to call Hira, after giving his visiting card. He phoned several times and Hira received the phone but did not speak out. Hira cut off the phone call when he told him the fact that Japanese national was gunned down. Local people brought the Japanese to hospital by an auto. Police came afterwards and heard about the occurrence from the people present there. He made a statement under section 164 of the Code of Criminal Procedure and he proved his statement before the court.

In cross-examination P.W.8 stated that he saw the occurrence from a far away. He did not see who had fired the gunshot.

In cross examination on behalf of other accused PW-8 further stated that he phoned Hira twice who cut off the first call but the second call was dropped. He asked Nuruzzaman to phone Hira but he did not know whether he phoned him or not. Hira did not call him back.

P.W. 9, Md. Monnaf Mia is a rickshaw puller. He testified that he was taking a Japanese national by his rickshaw to the grass farm at Alutari village on 03.10.2015. He entered into Alutari bound "Kacha" road at around 9.30/10.00 am while he

proceeded further 100 yards, he saw two men. They came near to his rickshaw and one of them said 'namashkar' to the passenger of his rickshaw and the man then fired pistol twice at the chest of his passenger. The passenger fell down to ground from his rickshaw. He being frightened ran away. Then he heard another sound of firing. He met Murad and they together with went back to the place of occurrence and saw three men going towards Haragacha by a motor cycle. Hue and cry spreaded out in response of which people rushed to the place of occurrence. The Japanese man was taken to hospital. Police took him to S.P. office for interrogation. Out of two men who attacked the Japanese between the two one was short and the other one was tall. The second person from the east among five standing on the dock was a man he saw in the place of occurrence. One Hira hired rickshaw at the rate of 200/250 taka daily. He had been carrying Japanese man by his rickshaw for 20/25 days before the occurrence and took rent from Hira. He made a statement before learned Senior Judicial Magistrate. He did not know how to read. He put his thumb impression after giving statement.

During cross examination on behalf of accused, P.W.9 stated that he saw no other person except the second from the east who was short and bearded man standing on the dock.

In cross examination by other set of accused he stated that he fled away just at the time of firing. He went 100/150 yards and saw Murad. He and Murad went back to P.O. and saw them fleeing away. He saw the accused face to face at the time of saying 'namashkar'. He denied the suggestions put to him that the person who said namashkar was not present on the dock or that he could not remember his physique or that he identified the man on surmise and being tutored he identified the man on the dock. He further denied that he himself was involved in the conspiracy or that he falsely deposed in the case.

P.W. 10, Md. Nurul Islam testified that while he was at Satmatha in the morning, he heard the news of firing at a Japanese national in front of house of Murad. The defence declined to cross examine him.

P.W.11, Abdullah Al Mamun testified that he has a hotel at Alutari intersection. He stated that in the morning three persons came from Satmatha by a motor cycle. The driver of the motro cycle used a helmet. Two persons got down from motor

cycle and went to "Katcha" road. The driver was waiting on the motor cycle on steam. The two men went about 15 cubit and sat on the road side as if they were to pass urine. They waited there for about 10 minutes. At that time he was carrying earth from the road. At one point of time, those two persons crossed him and after a title while he heard sound of firing. He saw those two persons riding on that motor cycle went towards Hargacha. A man was killed by gunshot. People brought him to hospital. He identified one bearded man out of the two present who stood second from the east on the dock.

In cross examination on behalf of one set of accused PW 11 stated that he could not see the man very well who was with helmet on his head. The tall man was not present in the court.

In cross examination on behalf of other set of accused he stated that place where the motor cycle stopped could be seen from his hotel. When the motor cycle came, he was digging earth beside the road. The motor cycle could be seen from his place if one was on his feet. The place where firing took place could be seen directly from his place. He went to the place of occurrence after half an hour of hearing the sound of firing. He did not try to stop Motor bike, when he went near to the motor

cycle. The distance between the motor cycle and him was 25/26 cubit. The short man sat in the middle and the tall man sat at behind. Faces could not be identified from 25/26 cubit. Two accused persons were short among all standing on the dock. He denied the suggestion that he did not see the short man identified by him on that day and that he being tutored deposed falsely and by concealing the truth.

P.W. 12, Arshed Hossain alias Rose testified that he heard a foreigner was shot dead. The defence declined to cross examine him.

P.W. 13, Kazi Ibne Nur alias Antu testified that he worked as an interpreter of Mr. Hoshi Kunio and he was in Dhaka at the time of occurrence. He stated that in the morning at about 10.00 am on 03.10.2015 he came to know the fact of murder of Hoshi Kunio, a Japanese national from a television news. Hoshi Kunio did not know how to speak either in English or in Bengali. He worked as interpreter over telephone from Dhaka. The defence declined to cross examine him.

P.W. 14, Most. Nur Jahan Begum testified that she heard a sound while she was cooking. People knocked at the gate of their house. She opened the gate and they wanted a 'lungi'. She

heard that three persons shot a Japanese man to death in front of their house. The defence declined to cross examine her.

P.W. 15, Md. Nurul Haque testified that the occurrence took place in front of his house. He heard that a Japanese man was shot dead by 3 persons and they fled away. At that time he was lying on his bed. Afterward, he found wounded man had already been taken to hospital. The defence declined to cross examine him.

P.W. 16, Md. A. Aziz testified that Liton and Saddam along with 5/6 persons rented his house on 20.06.2015. One of them had wife and 2 children. Wife of another used to come and live on and off. 5/6 male persons lived there. Tenants had an auto and each of them drove it by turn. They rented the house telling that they would run a cloth business. They were men of Gaibandha. They left the house in the last part of December, 2015. All the accused persons standing on the dock lived in his house. He heard that a Japanese man was killed on 03.10.2015 by JMB men.

In cross examination on behalf of one set of accused PW-16 stated that he could not say the names of all 5 accused persons present on the dock. He could not even say the names

of women who lived in his house. Wife of accused Sakhawat came first and she had 2 sons who were about 6 and 4 years old. He did not know whether accused persons were activists of JMB. He could not say who among the members of JMB killed the Japanese national. He denied the suggestion that he did not tell to police the fact of his house rent out of to 5/6 persons.

In cross examination on behalf of another set of defence he stated that he did not issue any rent receipt. Police called him in police station to see the accused after their arrest. He could not say the name of person from whom he heard the fact of killing by JMB activists. He denied the suggestions that accused did not rent his house and lived there and that he falsely deposed in the case.

P.W. 17, Md. Jasim Uddin is an owner of an auto rickshaw shop. He testified that one man purchased a second hand auto from his shop. All the accused who were present on the dock went to his shop to purchase the auto.

In cross examination on behalf of one set of accused PW 17 stated that he gave receipt and other papers to the buyer. He did not maintain any register. He could not say the name and address of the person whom he sold the auto. He was doing

business for 6/7 years. He denied that none of accused present on the dock purchased auto from him.

In cross examination on behalf of the other set accused, he stated that he had trade licence and he used to sale new and second hand auto. He denied the suggestions that he did not do the business of new or old auto sale but used to run business of stolen auto or that he falsely deposed concealing the truth.

P.W. 18, Md. A. Jalil testified that he had a garage for charging auto. 2/3 boys charged an auto of green color in his garage. Those who charged the auto, two of them were present. One was standing on the dock at the east and the other at the west.

In cross examination on behalf of one set of accused PW 18 testified that 15 vehicles were charged in his garage. He did not maintain any Register. He did not know the names and addresses of those men, whom he identified today on the dock. They always went to his garage. He himself did the act of charging. Police did not show/bring the accused to him but one accused was brought to his garage after arrest. He could not say his name.

In cross examination on behalf of another set of accused, he stated that he heard the news of killing of a Japanese national in television news broad cast at that time 10/15 persons used to keep vehicles in his garage. He did not know their names. Police did not arrange the conduct of Test Identification parade to identify the accused. He could not say the number of the auto. He was alone when apprehended accused was brought to his garage. He had no trade licence. He denied the suggestion that he being influenced by the prosecution falsely deposed in the case.

P.W. 19, Md. Abu Taleb is a Senior Judicial Magistrate. He testified that he recorded statements of Md. Monnaf and Maidul Islam under section 164 of the Code. He proved the statements and signature and thumb impression of Maidul and Monnaf which were marked as exhibits. 5, 5(2), 6, 6(1) and 6(2) respectively.

In cross examination on behalf of one set of accused, he stated that they did not disclose names of any other accused. The other set accused declined to cross him.

P.W. 20, Md. Golam Zakaria alias Bala testified that Hoshi Kunio lived in his house as his tenant. He came to know at about

9.30 am in the morning on the date of occurrence that Hoshi Kunio was shot at Alutari village. Hira asked him to go to hospital. He went to the hospital and found Hoshi Kunio dead. Police seized personal articles namely laptop, pen drives, pant, coat, currencies on 12.10.15 from his residence and prepared a seizure list. He signed the seizure list. He proved the seizure list and seized articles before the court which were marked as exhibit 7, 7(1) and Material exhibit No. II Series. The defence declined to cross examine him.

P.W. 21, Most. Aysha Zakaria is wife of P.W. 20. She testified that she signed the seizure list. She also proved the seized articles before the court. The defence declined to cross examine her.

P.W. 22, Md. A. Jalil is a locksmith. He testified that police took him to the residence of Japanese national and he unlocked a brief case. The articles found in the brief case were seized. He signed the seizure list. He proved his signature in the seizure list.

In cross examination on behalf of one set of accused PW-22 stated that after unlocking the brief case, currency, cloths and laptop were found. The other set of accused declined to cross examine him.

P.W. 23, Md. Shafiqul Islam testified that on 03.10.2015 a Japanese national was shot dead in front of house of Murad at Kachu Alutari village. He went to the place of occurrence and police seized a rickshaw, 3 empty cartridges, blood stained earth grass, sacks, piece of cloth, visiting card etc. and prepared two seizure lists. He proved the seized articles before the court.

In cross examination on behalf of accused PW 23 stated that he did not know the number of the rickshaw. He denied the suggestion that seized ricksaw was not that rickshaw recovered from the place of occurrence. The other accused declined to cross examine him.

P.W. 24, Md. Sohel Azad is a staff of Rangpur Medical College and Hospital. He testified that doctor declared gunshot wounded Japanese dead. Police seized passport, video camera, driving licence, 2 mobile sets, wrist watch, color photos, water bottle, purse, diary, toilet tissue, one hat from his bag and prepared a seized list. He signed the seizure list. He also proved the seizure list and his signature therein before the court.

In cross examination PW 24 stated that he was a trolley boy. The seized articles were in the bag. He could not say who was the owner of the seized articles. He denied the suggestion

that he signed on a blank paper. The other accused declined to cross examine him.

P.W. 25, Md. Faruque Islam was also a staff of Rangpur Medical College and Hospital. He stated that a Japanese national was brought to hospital in the morning at about 10.30 am or 11 am on 03.10.2015. The doctor on duty declared him dead. Police seized some articles from a bag and prepared seizure list. He signed the seizure list.

In cross examination on behalf of one set of accused PW 25 stated that he could not say who was the owner of the seized articles. He even could not say names of the persons who had brought Japanese at hospital. He was not able to remember the date and time when he signed the seizure list. He denied the suggestion that he signed on a blank paper. The other set of accused declined to cross examine him.

P.W. 26 Md. Oliar Rahman, a Sub-Inspector of Police testified that some personal articles of deceased Hoshi Kunio were seized in his presence and seizure list were prepared. He signed in the seizure lists. The defence declined to cross examine him.

P.W. 27, constable Md. Nuruzzaman testified that he went to the place of occurrence with Police Inspector Md. Mamumur Rashid. Hoshi Kunio, a Japanese national was killed by motor bikers. He also went to hospital on 04.10.2015 with Investigating Officer. Some articles were seized on 03.10.2015 and 04.10.2015. He signed the seizure lists. The defence declined to cross examine him.

P.W. 28, Md. Dulal Mia an Assistant Sub-Inspector of Police testified that he went to the place of occurrence on 11.10.2015 and searched the place of occurrence. He seized some articles and he handed over the seized articles to Investigating Officer. The Investigating Officer prepared a seizure list. He signed the seizure list and he also proved the empty cartridge before the court.

P.W. 29, constable Md. Nur Alam and P.W. 30, constable Md. Habibur Rahman were accompanied forces of ASI Dulal Mia. They testified the fact of recovery of an empty cartridge and preparation of seizure lists. They signed the seizure lists. They proved their signatures in the seizure lists. The defence declined to cross examine them.

P.W. 31, Md. Masud Rana was a former U.P member. He testified that police went to the house of accused Masud Rana and seized a mobile phone from his living room in his presence. He signed the seizure list. He proved the seizure list as well the seized article before the court. He identified accused Masud Rana on the dock.

In cross examination on behalf of one set of accused he stated he went to the house of accused Masud Rana after seized of his mobile phone. He could not say whether the mobile phone was working or not. He denied the suggestions that the seized mobile phone was not belong to Masud Rana or that he did not see the recovery of mobile phone or that he falsely deposed. The other accused declined to cross examine him.

P.W. 32, Md. Saiyad Ali was a neighbor of accused Masud Rana. He testified that he was present at the time of seizure of Symphony mobile set on 02.12.2015 from Masud Rana's room. He signed the seizure list. He proved the mobile phone and identified accused Masud Rana on the dock.

In cross examination, on behalf of one set of accused PW 32 stated that he knew Masud Rana from childhood. Police

called on him. He stayed at the courtyard. Mobile set was shown to him. He went with police. He denied the suggestion that he had enmity with Masud Rana or that he falsely deposed. The other set of accused declined to cross examine him.

P.W. 33, Md. Al-Imran was an another neighbor of accused Masud Rana. He testified that police seized a Symphony mobile set from the house of accused Masud Rana. He signed the seizure list.

In cross examination, on behalf of one set of accused, PW 33 stated that he went after half an hour. He was not present when police had seized the mobile. He did not know to whom the mobile belonged to. His house and house of accused Masud were in the same village. He denied the suggestion that he falsely deposed in the case. The other set of accused declined to cross examine him.

P.W. 34, Md. Jamsed Ali testified in his evidence that police seized monitor of computer, photostate machine, printer, laminating machine etc. on 26.05.2016 from the shop of accused Abu sayed and prepared a seizure list. He put his signature on the seizure list. He knew the accused. Their houses

were in the same village. He positively identified the accused on the dock.

In cross examination on behalf of one set of accused, PW 34 stated that Abu Sayed had been running his shop for 7/8 years in Kaligonj bazar and he manufactured banner and festoon before opening the shop. The other set of accused declined to cross examine him.

P.W. 35, Md. Monju Mia testified that police seized some articles from the shop of Abu Sayed. He was present and he signed the seizure list as Exhibit No. 12(2). He heard that police had arrested Abu Sayed on allegation of making number plates of motor cycle.

In cross examination on behalf of one set of accused PW 35 stated that Abu Sayed had been making number plates for 10/12 years. Police did not show him any number plate. The other accused declined to cross examine him.

P.W. 36, Md. Motiar Rahman testified that police seized computer, some books and number plates of vehicle on 26.05.2016 from the shop of Abu Sayed and prepared a seizure list. He knew Abu Sayed and identified him on the dock. He proved his signature in the seizure list.

During cross examination on behalf of one set of accused he stated that he could not say who made the number plates but those were seized from the shop of Abu Sayed. He even could not say any of the number painted on the plates. He did not know how many number plates were seized. Three persons including Abu Sayed worked in the shop. Police seized those from the shop. Abu Sayed use to manufacture banner and festoon. He signed the seizure list after it was being read over to him. The other accused declined to cross examine him.

P.W. 37, Dr. Md. Rafiqul Islam was the Head of Department of Forensic Medicine, Rangpur Medical College and Hospital. He stated that the board constituted for holding post mortem examination was headed by him. They performed autopsy of the corpse of Hoshi Kunio and prepared a Post Mortem report on 04.10.2015. All Board members signed on it. He proved the post mortem report and his signature therein. The defence declined to cross examine him.

P.W. 38, Dr. Harendra Nath Goswami was the member-secretary of Medical Board and P.W. 39 Dr. Narayan Chandra Saha and P.W. 40 Dr. Rabishankdar Mondal were the members of the board. In order to prove the post mortem examination

report. They supported the testimony made by P.W. 37 in proof of the post mortem examination report. They proved their signature in the report. The defence declined to cross examine them.

P.W. 41, Md. Shahjahan Ali, who testified that Japanese national Hoshi Kunio took his land on lease through Humayun Kabir. He started cultivating grass. He used to go to his grass field every day at 10 in the morning and also used to return at 4 in the afternoon. On 03.10.2015, he heard that some miscreants shot Hoshi Kunio. The miscreants came by motor cycle. He was brought to hospital and was declared dead. A few days later he heard that miscreants who shot Hoshi Kunio lived in the house of Abdul Aziz at Nurpur. The defence declined to cross examine him.

P.W. 42, Md. Zahurul Islam testified that he held inquiry of Saddam Hossain, Rahul and Ahsan Ullah Ansari and found their name and addresses correct and also came to know that they were activists of JMB and were involved with several incidents of killings and sabotages.

In cross examination on behalf of absconding accused Md. Ahsan Ullah Ansari PW 42 stated that he did not submit any

document with regard to the involvement of Ahsan Ullah Ansari with JMB. He denied the suggestions that he was suppressed the truth. He denied that he did not conduct the verification properly. The other accused declined to cross examine him.

P.W. 43, ASI Md. Iqbal Hossain, who testified that he verified the name and address of Liton Mia and found him missing. He was an activist of JMB and his behavior and character were not good. He was an accused of Gabtali Model Thana (Bogura) Case No. 16 dated 11.07.2009 lodged under sections 143/34/354/379/307/326/448 of the Penal Code.

In cross examination he stated that he came to know the fact of involvement of Liton with JMB by a secret source. He did not record statement of anyone. He denied the suggestion that Liton was not an activist of JMB. The other accused declined to cross examine him.

P.W. 44, SI Dilip Kumar Ray, who testified in evidence that he enquired into the name and address of Nazrul Islam alias Bike Hasan alias Hasan son of Md. Abdullah. He found name and address correct. He further stated that he found the accused Nazrul was an accused of Devigonj Police Station Case Nos. 7 and 8 dated 21.02.2016 lodged under sections 302/326/109/34

of the Penal Code and under the Arms Act and the explosive Substances Act. The defence declined to cross examine him.

P.W. 45, ASI Md. Ashiqur Rahman, who testified in evidence that he inquired into the name and address of Abu Sayed son of late Shariatullah and he found name and address correct. He came to know through his source that the accused was an activist of JMB.

In cross examination on behalf of accused Abu Sayed PW 45 stated that he did not record the statement of his local source. He denied the suggestion that he leveled Abu Sayed an activist of JMB for his personal benefit. The other accused declined to cross examine him.

P.W. 46, S.I. Mintu Chandra Bonik, who testified in evidence that he inquired into the name and address of Ahsan Ullah Ansari alias Biplob and he found his name and address correct. He came to know that he was involved with several terrorists and militant activities.

In cross examination PW 46 stated that there was no case against absconding accused Ahsan Ullah Ansari. He denied the suggestions that the fact of involvement with militant activities of the accused was baseless and that he was not an activist of

JMB. He further denied that he deposed at the behest of his higher authority or that he did not conduct proper verification.

P.W. 47, Md. Shafiul Alam is a Senior Judicial Magistrate. At the relevant time he was posted at Rangpur. He recorded confession of Md. Humayun Kabir Hira on 28.10.2015, Masud Rana on 07.12.2015, Md. Isahaque Ali on 14.12.2015 and Md. Liton Mia on 21.01.2016 under section 164 of the Code. He proved the statements before the court.

In cross examination, he denied the suggestions that Md. Humayun Kabir Hira, Masud Rana, Md. Isahaque Ali and Md. Liton before recording their statement told him that they were neglected to torture in police custody or that they had number of injuries in their body or that he disregarding legal directions recorded their statements or that he being influenced by the prosecution recorded their confessional statements.

P.W. 48, Md. Jamal Uddin, a Police Inspector of CID, Jessore. He being a ballistic expert examined the seized bullet. He opined that the bullet was a fired bullet from 9 mm caliber firearm and it was fired by a locally made firearm. He also examined seized fired cartridge and found those were of same

caliber of firearm. He proved his report and his signature thereon.

In cross examination he stated that it was not possible to detect the specific firearm from which the bullet was fired. He denied the suggestion that he did not conduct the examination properly.

P.W. 49, ASI Md. Sabuj Sarker is also an enquiry officer who verified the name and address of Masud Rana. He stated that he found name and address of the accused were correct. He further stated that Pirgachha Police Station Cases Nos. 2 and 3 dated 03.12.2015 were lodged against Masud Rana under the Explosive Substances Act, 1908 and the Arms Act, 1878.

In cross examination on behalf of accused Masud Rana, he stated that he could not seize any document showing Masud Rana was an activist of JMB. The other accused declined to cross examine him.

P.W. 50, Md. Mirzol Sarder was an employee of Rangpur Medical College and Hospital. He testified that at the time of inquest examination of the corpse of deceased Hoshi Kunio he was present. He saw bleeding injuries on lower part and right

side of neck, on the chest, on bottom of right thumb of the dead body. He proved the inquest report and his signature therein.

In cross examination on behalf of Masud Rana, he stated that inquest examination was held at about 9.30 am on 04.10.2015. He was present beside the body. He did not turn the dead body. The other accused declined to cross examine him.

P.W. 51, Md. Soleman Sardar, and P.W. 52, Md. Asaduzzaman were employees of Rangpur Medical College and Hospital. They were present at the time of inquest. They signed the inquest report. The accused declined to cross examine him.

P.W. 53, Police Inspector Md. Mamun Or Rashid in the first Investigating Officer of this case. He was also recording officer of the police case. He testified that he visited the place of occurrence during his investigation and he prepared sketch map with index. He went to the Hospital. He conducted inquest on the dead body and prepared inquest report and obtained signatures of the witnesses. He seized one bullet and 3 fired cartridges. He collected blood swab and prepared 7 seizure lists. He collected post mortem report. He sent blood swab, bullet and cartridge for ballistic examination. He arrested Md.

Humayun Kabir Hira and Md. Rashedunnabi Khan. He reduced into writing the statements of 16 witnesses under section 161 of the Code of Criminal Procedure. He transferred custody some personal belonging of the deceased to Shoji Ono, First Secretary, Embassy of Japan and prepared jimmanama. He proved seizure lists sketch map and index before the court. He also proved jimmanama. He identified the seized articles before the Court.

In cross examination on behalf of one set of accused he stated that he took Hira and Rashedunnabi Khan under police remand. He also stated that witnesses who gave statements to him under section 161 of the Code of Criminal Procedure did not mention names of accused Liton, Abu Sayed and Sakhawat.

In cross examination on behalf of the other set of accused he stated that the occurrence took place at 9.50 to 10.05 on 03.10.2015. The first information report was lodged at 19.15 hours. He did not ask the informant about cause of delay in lodging FIR. He denied the suggestion that he did not conduct proper investigation or that he deposed on conjecture and surmise.

P.W. 54, ABM Zahidul Islam is the 2nd Investigating officer. He held investigation when he was officer in charge of Kaunia Police Station. He visited the place of occurrence. He did not prepare sketch map and index of the place of occurrence finding the same correctly prepared by the first investigation officer. He recorded statements of 5 witnesses under section 161 of the Code of Criminal Procedure. He seized a mobile phone from the house of accused Masud Rana on 02.12.2015 and prepared a seized list. He received the ballistic examination report and collected call list of 3 mobile phone numbers. During investigation accused Humayun Kabir Hira, Masud Rana, Md. Isahaque Ali and Liton Mia gave confessional statements under section 164 of the Code of Criminal Procedure.

In cross examination, on behalf of one set of accused he stated that the witnesses whose statements were recorded under section 161 of the Code did not mention the names of accused Liton, Abu Sayed and Sakhawat. Mobile phone number of accused Liton was 01794198829. He did not verify ownership of 3 mobile phones mentioned in the call list on the reason that owners admitted the same. He has denied the suggestion that

he did not collect call list of Liton's mobile phone and he was obtaining statement under section 164 of the Code by threat.

In cross examination on behalf of other set of accused he stated that he did not arrest Hira, a friend of Hoshi Kunio but he interrogated him who gave statement under section 164 of the Code. He could not record statement of Hira's elder brother Kamal Haidar, who could not be traced out. He could not apprehend Bijoy. There was no name of officer of Mobile Phone Company, signature and seal in the call list and no mobile operator was called as witness. He collected mobile call list through police Head Quarter. Accused Masud Rana was shown arrested and he seized mobile phone from Masud Rana on 02.12.2015. No sim card was found in the mobile phone. The mobile phone was inactive. He denied the suggestions that call list of mobile phone was not correct or that he falsely implicated the accused persons and left out the real criminals or that he gave false evidence.

P.W. 55, Md. Abdul Kader Zilani is the 3rd investigating officer of the case. He took the charge of investigation on 24.03.2016. He stated that he thoroughly perused the case diary. He visited the place of occurrence but did not prepare sketch

map and index afresh. He examined all the witnesses who were examined earlier. He recorded statements of 19 witnesses under section 161 of the Code of Criminal Procedure. He prepared sketch map and index of the house of second place of occurrence. He seen the confessional statement of accused Masud Rana and it appeared to him that accused Abu Sayed was an activist of JMB. Abu Sayed made number plates of motor cycle in order to facilitate movement and working of members of JMB. Materials of making fake number plates were recovered and seized from his shop in connection of Kuania Police Station case 10 dated 11.11.2015 and the same were shown seized in this case. He sent a shirt worn by the deceased for examination and received the report. He received the ballistic examination report of 3 fired cartridges. He also received ballistic examination reports relating to the use of firearm in the occurrence committed in connection with Kotwali Police Station Dinajpur Case No. 43 dated 18.11.2015 and Devigonj Police Station, Case No. 11 dated 26.02.2016. PBI Rangpur took snap shots and recorded video of the place of occurrence and made compact disk (CD). He received forensic examination report of seized mobile of accused Madud Rana.

He asserted that all the accused were activists of JMB. Their object was according to their thought to establish Din-Islam through Jihad. They threatened and tried to motivate people to join them against the person who were against Islam or Shariah. They even killed any one who were against their ideology. They wanted to destabilize the country and ruin the economy by way of killing foreigners. They thought it would be easier to establish their rule. That was the reason, they made their target Hoshi Kunio, a Japanese national. They made a plan and accused Masud Rana, Saddam, Bijoy, Hasan, Ahsan Ullah Ansari alias Biplob started to watch the movement of Hoshi Kunio before 8/10 days of the occurrence and in continuation of their plan on 19.09.2015 at about 12 in the noon Masud, Saddam and Hasan went there, and followed Hoshi Kunio, at his grass field at Kachu Alutari village and they also watched him on 30.09.2015 in the afternoon from a tea stall near to his residence at Munsipara under Kotwali police station. As a part of the plan on 02.10.2015 Saddam asked Masud Rana to come and Saddam asked him to go Nabdigonj. Saddam and Hasan told Masud Rana to stay at Nabdigonj level crossing on 03.10.2015. He did so and on 03.10.2015 at 9.00 am in the morning Hasan

and Bijoy went there by a red color TVS motor cycle and they went to the place of occurrence. Hasan drove the motor cycle. Each of them had a pistol and 2 magazines and each magazine contained 4 catidges. Bijoy and Masud Rana got down from the motor cycle and had been staying in front of house of Murad. Hasan had been waiting on the pucca road riding on the motor cycle in steam. At that time Hoshi Kunio rached there on his way to the grass farm by a richshaw of Monnaf. Masud and Bijoy appeared before the rickshaw and Bijoy asked to halt saying “adab” to Hoshi Kunio. As soon as the rickshaw halted Masud Rana shot twice to Hoshi Kunio. The first shot hit at the left side of neck of Hoshi Kunio and the second shot did not hit him though it was fired aiming at his head. Accused Bijoy shot to Hoshi Kunio from a pistol. Then Hoshi Kunio fell down on the ground. The rickshaw puller made a shout and being frightesed ran away. Then Masud and Bijoy rode on the motor cycle of Hasan and they ran away towards Haragach through kancha road. Then Hasan and Bijoy took arms from Saddam at their rented house and started for Masud Rana at Nabdigonj. Accused Ahsan Ullah Ansari alias Biplob was patrolling on the road to facilitate Masud Rana, Bijoy and Hasan moving safely

before and after killing operation. Hearing sounds of firing local people came to the place of occurrence and brought Hoshi Kunio to Rangpur Medical College and Hospital and doctors on duty declared him dead.

Considering the evidences collected during investigation a prima facie allegation of killing Hoshi Kunio, a Japanese national, was proved and he submitted charge sheet under sections 302/34/109 of the Penal Code against (1) Masud Rana alias Mamun @ Mantri (2) Md. Isahaque Ali, (3) Liton Mia alias Rafique (4) Abu Sayed (5) Md. Saddam Hossain alias Rahul alias Chanchal alias Sabuj alias Rabi (6) Md. Ahsan Ullah alias Biplob (7) Md. Nazrul Islam alias Hasan alias Bike Hasan and (8) Md. Sakhawat Hossain alias Shafique.

He could not trace out actual name and address of Bijoy. Accused Bike Hasan and Saddam were killed in cross fire in connection of other incidents. He proved the 2nd sketch map and index and his signature. He also proved other document collected during investigation and report dated 18.11.2015 as exhibit no. 26. He also proved articles seized during investigation.

In cross on behalf of one set of accused he stated that accused Sakhawat Hossain's home was under Saghata Police Station of Gaibandha district and no officer of Saghata Police Station was called as witness. He arrested accused Abu Sayed and took him on remand. He did not recover number plate at fixed the word 'PRESS' of the motor cycle used in the commission of killing. Kamal Haidar, elder brother of Hira was neither made a witness nor an accused. The persons whose names were disclosed in the confessional statement of accused Liton recorded under section 164 of the Code were neither witnesses nor accused because they were not related with the case. Accused Isahaque mentioned the names of Chandu and Abdur Rahman and they were not involved in the occurrence. Accused Masud Rana mentioned the names of Mohammad Ali, Ershad Ali, Kasem Ali, Mehedi Hasan, Abdul Aziz, Raihan, Arefin, Saju and Anarul and they were also found not connected with occurrence. Police officer Mamun or Rashid seized computer and other articles. He did not conduct any search for real owner of seized number plates. He did not also arrange identification parade of the accused due to accused gave confessional statement. He denied the suggestions that no witness said the

name of Showkat or that Shafique was not another name of Sakhawat or that his investigation was perfunctory or that he submitted a false charge sheet.

In cross examination done by another set of accused adopted the evidence. He testified that Hoshi Kunio was converted to show that faith of Islam few days before his killing. It was mentioned in the confessional statement of accused Masud Rana recorded under section 164 of the Code that country would be unstable if forginers were killed. It was also mentioned in his statement that Masud Rana, Saddam and Hasan followed Hoshi KUnio. Bijoy asked to stop rickshaw saying 'adab' to Hoshi Kunio. Address of Humayun Kabir Hira is Rabartsongonj, Kotwali, Rangpur. He did not know the address of Kamal Haidar, elder brother of Hira. Hira stated in his statement recorded under section 164 that his brother said to him before 2/3 days of the occurrence that activist of Shibir might kill Hoshi Kunio. He did not interrogate Kamal Haidar. He did not get any evidence in support of proof of statement of Hira relating to Shibir and he did not feel necessary for further investigation about that part of Hira's statement as accused

persons gave confessional statement. Hira and Hoshi Kunio ran grass farm jointly.

He denied the suggestions that all the accused persons were not member of JMB and they were falsely implicated or that they were innocent or that in order to gain financial benefit he submitted false charge sheet in connivance with Hira or that he falsely deposed in the case.

The defence also examined one Defence witness (DW).

D.W. 1, Md. A. Mazid Mondal was examined on behalf of accused Md. Sakhawat Hassain alias Shafique. He was a member of Haldia Union Parishad under Saghata police station of district Gaibandha. He stated that accused Sakhawat Hossain was present on the dock. He knew him personally. His father's name is Abdur Razak Mondal. He was alive. They had a house in the same village. He did not know whether Sakhawat had another name. So far his knowledge goes Sakhawat had no other name particularly name of Shafique. U.P. Chairman, female member and he jointly gave and attested a certificate in the name of Sakhawat Hossain. He was familiar with their signatures. He proved the certificate and attestation.

In cross examination by prosecution, he stated that the attested certificate was a computer composed and it was not written on specific printed pad of Union Parishad. He passed class-VIII. The name of the Chairman was Md. Yakub Ali Prodhan. The name of the Chairman Md. yakub Ali was written in the seal used in the attested certificate. The word 'Prodhan' was left out. The word 'we' was not used in the attested certificate. He signed on 03.02.2017 and Chairman signed on 05.02.2017 and female member did not give date after her signature. Number was not inserted in the attested certificate. Houses of the Chairman and female member were consecutively located 2 and half kilometers and 1 and quarter kilometers away from his house. He had no document with him in support of proof that he was a member of Union Parishad. He had no I.D. card with him. He could not give guarantee whether Sakhawat was involved in subversive activities. He did not know which of the persons of his ward used to go where and to do what. He denied the suggestion that being influenced by the family member of Showkat he signed in the attested certificate. To answer the court's questions, he replied that he heard that Shakwat had been involved with militant organization.

Mr. Md. Ahsanullah, learned Advocate appearing on behalf of convict-appellant Masud Rana @ Mamun @ Mantri submitted that he was arrested on 30.11.2015 in Kawnia Police Station Case No. 10 dated 11.11.2015 and after completion of police remand convict Masud Rana was shown arrested in the present case i.e Kawnia Police Station Case No. 04 dated 03.10.2015 and gave confessional statement on 07.12.2015 under section 164 of the Code. The learned Advocate also submitted that before recording his confession no assurance was given to him that he would not be sent back to police remand or police custody, if he refuses to give any confession. He also pointed out that confession was not written by the learned Judicial Magistrate in his own hand. The statement was not read over to the maker and his signature was taken after found it to be true. He was not warned that he was not bound to make confession and if he makes confession, it might be used against him. In this circumstances learned Advocate cited the case of the State Vs Babul Mia 63 DLR (AD) 10. In that case, it was held:

“It is mandatory requirement that after recording a confessional statement the recording Magistrate is required to make a memorandum to the confession containing a clause to the effect. That he had warned the accused that he was not bound to make a confession, that if he makes a confession it would be used against him, that the statement was true and voluntarily, that it was recorded as per version of the maker and that it was read over to the maker after his statement was recorded which was the true and correct version it contained a full and true account of statement made by the maker.”

He also submits that act of recording confession is a very solemn act and in discharging his duties, the magistrate must have taken care to see that the requirements of sub-section (2) of section 164 are fully satisfied. The provisions of sub-section (3) of section 164 is mandatory and therefore he is required to fill up column 7 of the form for recording confession which is a column for recording a brief statement of the Magistrate's records for believing that the statement was voluntarily made.

In this circumstances, learned Advocate submits that the confessional statement of Masud Rana being recorded without complying the provisions of section 164(3) of the Code of Criminal Procedure and the same confession is inadmissible. The learned Advocate has referred to the case of Indian authority namely Dogdu Vs. State of Maharashtra AIR 1977 SC 1759. In the case Dogdu Vs. State, it was observed:-

“when in a case involving capital punishment, prosecution demands conviction primarily on the basis of confession, the Court must apply the double tests: (I) Whether the confession is perfectly voluntary, and (II) if so, whether it is perfectly true.”

The learned Advocate submits that in the confessional statement of convict Masud Rana it is stated that he shot twice and one of the bullets wounded left neck of Hoshi Kunio and second bullet was not fired as it was stuck inside the gun. Thereafter, Bejoy shot Hoshi Kunio several times and Hoshi Kunio fell down and Bejoy also shot one more time. The learned Advocate further submits that single arm was used for the killing. In the confessional statement of accused Masud Rana he

stated that he fired twice and one bullet was stuck inside the gun and one bullet hit the neck of the victim and two other shots were fired by another accused Bejoy. In the forensic examination report dated 12.10.2015 it is stated that a single weapon was used to kill Hoshi Kunio. The postmortem report identified that gun shot on right side of the neck and post mortem report is inconsistent with contents of the confessional statement of accused which is unreliable. He also submits that witness Nos. 9 and 11 who were not known to him but first time identified him on the dock without any test identification parade and as such their testimonies are absolutely valueless. The learned advocate also submits that accused Nazrul @ Hasan @ Byke Hasan was killed on 03.08.2016 in a gun fight before framing the charge and the accused Saddam Hossain @ Ruhul@Chanchal @Sobus@ Robi was also killed on 05.01.2017 in a gun battle with counter terrorism unit in Dhaka after framing of charge. He submits that when co-accused died by gun fight it is obvious that other accused persons and the witnesses could easily be frightened and as a result of which they made statement according to dictation of the investigating officer.

In the circumstances he cited the case of Md. Humayon Kabir Vs. The State, 15 SCOB (2021), (AD), 76, It was held in the case:

“Discloser of the name and particulars of an unknown man can not be accepted as correct identification. In the case of Kanan Vs. State of Kerala reported in AIR 1979 SC 1127 it was observed by the supreme Court of India that where a witness identifies an accused who is not known to him, in the Court for the first time, his evidence is absolutely value less unless there has been a previous T.I. Parade to test his powers of observations. The idea of holding T.I. Parade under Section 9 of the evidence Act is to test the veracity of the witness on the question of his capability to identify and unknown person whom the witness may have seen only once. If no T.I. parade is held then it will be wholly unsafe to rely on his testimony regarding the identification of an accused for the first time in Court. It is necessary when the witnesses admitted that the accused was not known the witnesses before happening of the incident seen by them. When the accused person is not previously known to the witness concerned then identification of the accused by the witness soon after the former’s arrest is of vital importance

because it furnishes to the investigating agency an assurance that the investigation is proceeding on right lines in addition to furnishing corroboration of the evidence to be given by the witness later in Court at the trial. In view of the discussion made above, we are of the view that the story of last seeing of the victim with the company of the appellant at about 10.30 a.m. to 11.00 a.m. on 30.06.2004 is highly doubtful. Their conduct does not inspire confidence.”

He finally submits that the sentence of death awarded to the appellant Masud Rana is too severe and that his sentence may be commuted from death to one of imprisonment of life.

On the other hand Mr. Sk Mohammad Morshed, learned Additional Attorney General along with Deputy Attorney General Mr. Boshir Ahmed appearing on behalf of the State submits that confessional statement of the accused is true and voluntary and learned Magistrate filled up column of the Form and followed necessary requirements as per law. The learned Additional Attorney General argued that reason for injury found on the right side of the neck was due to dissection of great vessel-neck structures. The learned Deputy Attorney General also refers to the case of Pargan Singh Vs. State of Punjab

reported in AIR 2014 SC 3790 and (2014), 14 SCC 619 where the witnesses did not know the accused before but identified the assailants after 7 ½ years though they had seen the perpetrator only 90 second. The Supreme Court of India found 90 second was too long period which could enable an eye witness to watch the accused persons and such a horrible experience would not be easily forgotten. The learned Deputy Attorney General also submits that in the present case the alleged occurrence took place on 03.10.2015 and P.W. 9 and 11 identified the accused Masud Rana on 24.01.2017, after one year and three months and which is very much possible to identify the assailants properly and without any doubt.

In the light of above submission of the learned advocates for both the sides, we have perused the confessional statement of Masud Rana which runs as follows:-

“আমার নাম মাসুদ রানা হলেও আমার ডাক নাম মাসুদ রানা ☉ মামুন ☉ মঞ্জী।
আমার সার্টিফিকেট মতে বয়স ২০/১১/১৯৯২ হিসাবে ২২ বৎসর কিন্তু আমার প্রকৃত
বয়স ২৩/২৪ বৎসর। আমি পবিত্রবার ফাজিল মাদ্রাসা হতে ফাজিল পাস করি।
আমার সেশন ছিল ২০১৩-২০১৪।

আমার ব্যবহৃত মোবাইল নম্বর দুইটি ছিল ০১৭৮৬৯৭৬২৩৫ এবং
০১৯৮৪৮১৩৩৭৬।

আমি সপ্তম শ্রেণীতে লেখাপড়া করাকালে ছাত্র শিবিরকে সমর্থন দিয়েছি। সরাসরি জড়িত ছিলাম না। আমি অষ্টম শ্রেণীতে লেখাপড়া করাকালে জে,এম,বি এর নেতা মোঃ ইনছার আলীর মাধ্যমে জে,এম,বি তে যোগদান করি। ইনছার আলীর পিতার নাম মৃত ময়েজ উদ্দিন। তিনি লিবিয়াতে কাজ করতে গিয়ে মারা যান।

আমি জে,এম,বি তে যোগদানের পর ভালো কাজ করায় আমাকে পীরগাছা থানার সভাপতি অর্থাৎ দায়িত্বশীল হিসাবে নিয়োগ দেয়। আমি আমার এলাকার ১। এরশাদ আলী (২৬) পিতা হবিবর, ২। কাশেম আলী (২৪) পিতা ছাবু ৩। মেহেদী হাসান (৩২) পিতা আঃ মান্নান ৪। আব্দুল আজিজ (১৫) পিতা খবির, (৫) ইসাহাক খাঁ (২৫) পিতা মৃত ময়েজ খাঁ ৬। রায়হান (২০) পিতা শাহজাহান এবং ১। মোঃ আরেফিন (৩০) পিতা-জানিনা ২। সাদ্দাম ওরফে রাহুল (২৫) পিতা অজ্ঞাত ৩। সাইদ (২৬) পিতা অজ্ঞাত ৪। সাজু (২৪) পিতা অজ্ঞাত ৫। আনারুল (২৪) পিতা অজ্ঞাত ৬। চাঁদু(২২) পিতা আবুল হোসেন গন অন্য এলাকার ছিল তাদের নিয়ে কাজ করতাম। আমি ও সাদ্দাম মূল কাজ করতাম।

আমার উদ্দেশ্য ছিল সশস্ত্র জিহাদের মাধ্যমে দীন ইসলামকে প্রতিষ্ঠা করা। যারা ইসলাম ও শরীয়া বিরোধী কাজ করতো তাদের আমরা সঠিক পথে আসতে বলতাম। না আসলে আমরা হুমকি দিতাম এবং তাদের হত্যার বিধান থাকায় তাদের হত্যাও করতাম।

বিদেশী নাগরিকদের হত্যার মাধ্যমে দেশকে অস্থিতিশীল করার জন্য হাই কমান্ড এর নির্দেশনা আমাদের উপর ছিল। এ দেশকে অস্থিতিশীল করলে দেশের অর্থনীতি ভেঙ্গে পড়তো। তখন দেশে ইলামিক অভ্যুত্থান করা সহজ হতো জন্য বিদেশীদের হত্যার পরিকল্পনা করা হয়। এরই প্রেক্ষিতে আমরা জাপানী নাগরিক কুনিও কে হত্যার পরিকল্পনা করি। আমি, সাদ্দাম, বিজয়, হাসান এবং আহসান আনছারী বিপ্লব সিদ্ধান্ত গ্রহন এবং পরিকল্পনা করি। এই ধারাবাহিকতায় আমি সহ উপরোক্ত ৫ জন খ্রিষ্টান জাপানী নাগরিক হোশি কুনিও এর চলাচল ও গতি বিধির উপর নজর রাখি। আমরা ঘটনার ৮/১০ দিন পূর্ব হতেই এ কাজ শুরু করি। প্রকৃতপক্ষে হোশি কুনিও কে টার্গেট করে সাদ্দাম। গত ২১/০৯/২০১৫ ইং তারিখের ১২.০০ টার দিকে কাউনিয়া থানাধীন কাচু আলুটারী গ্রামে হোশি কুনিও এর ঘাসের প্রজেক্টে তাকে আমি, সাদ্দাম এবং হাসান লাল মোটর সাইকেল নিয়ে অনুসরণ করি। তার সম্পর্কে খোঁজ খবর নেই।

গত ৩০/০৯/২০১৫ ইং এ বিকালে কুনিও এর বাড়ীর সামনের চায়ের দোকানে আমরা পাঁচ জন চা খাই এবং তার গতি বিধি লক্ষ্য করি।

গত ০২/১০/২০১৫ ইং এ আমাকে সাদ্দাম রংপুরের সাতমাথায় আসতে বলে। পরে আমি তাকে ফোন দিলে সে আমাকে নন্দীগঞ্জ রেল ক্রসিং এ যাওয়ার জন্য বলে। তাদের নির্দেশনা মতে আমি গত ০৩/১০/২০১৫ ইং তারিখে সকাল ৯.০০ টার দিকে নন্দীগঞ্জ রেল ক্রসিং এ গিয়ে অপেক্ষা করতে থাকি। এর কিছুক্ষণ পর হাসান ও বিজয় একটি লাল রং এর টিভিএস মোটর সাইকেল নিয়ে আমার নিকট আসে।

আমরা তিনজন একই মোটর সাইকেল উঠি। হাসান মোটর সাইকেল চালায়। আমি মোটর সাইকেলের মাঝে বসা ছিলাম। হাসানের কোমড়ে বাম সাইডে প্যান্টের ভেতরে একটি পিস্তল ছিল। বিজয় আমাকে একটি পিস্তল দেয়। আমি তা আমার ডান কোমড়ে শার্টের নীচে প্যান্টের ভিতরে রাখি। বিজয়ের কাছেও একটি পিস্তল ছিল। আমাদের প্রত্যেকের কাছে একটি পিস্তল ও দুইটি করে গুলি ভর্তি ম্যাগাজিন ছিল। প্রতিটি ম্যাগাজিন চার রাউন্ড করে গুলি ছিল।

আমরা মোটর সাইকেলে করে হোশি কুনিও এর খামারের দিকে যাই। হাসান আমাদেরকে খামারে যাওয়ার কাঁচা রাস্তায় নামিয়ে দিয়ে সে মোটর সাইকেল নিয়ে পাকা রাস্তায় অপেক্ষা করতে থাকে। আমি ও বিজয় হোশি কুনিও এর আসার অপেক্ষায় রাস্তার পার্শ্বে একটি বাড়ীর সামনে পায়চারী করতে থাকি। আনুমানিক সকাল ৯.৩০ ঘটিকার সময় পাকা রাস্তা হতে রিকসা যোগে হোশি কুনিও খামারের কাঁচা রাস্তায় ঐ বাড়ীর সামনে আসা মাত্র আমি ও বিজয় তার রিক্সার সামনে যাই। বিজয় তাকে আদাব দিয়ে রিক্সা থামাতে বলে। রিক্সা থামা মাত্র আমি আমার কোমড় হতে পিস্তল বের করে হোশি কুনিও কে রিক্সায় বসা অবস্থায় দুই রাউন্ড গুলি ছুড়ি। প্রথম গুলিটি হোশি কুনিও এর গলার বাম দিকে লাগে। কিন্তু দ্বিতীয় গুলিটি তার মাথায় লক্ষ্য করে ছোঁড়া হলেও পিস্তল হতে গুলি বের না হয়ে আটকে যায়। তখন বিজয় তার হাতে থাকা পিস্তল দিয়ে পর পর কয়েক রাউন্ড গুলি করলে হোশি কুনিও মাটিতে পড়ে যায়। তখন বিজয় আরো এক রাউন্ড গুলি করে। রিক্সাওয়ালা দৌড়ে পালায়। কাজ শেষে আমি ও বিজয় পাকা রাস্তায় অপেক্ষমান হাসানের মোটর সাইকেলে উঠে চলে যাই। আমরা মোটর সাইকেলে হারাগাছের দিকে যেতে প্রথমে যে বাজার পাওয়া যায়, তার পূর্ব দিক দিয়ে কাঁচা রাস্তা হয়ে কিছু দূর যাওয়ার পর এক ফাঁকা জায়গায় মোটর সাইকেল থামিয়ে মোটর সাইকেলের নম্বর প্লেট পরিবর্তন করে ঐ রাস্তা দিয়ে সোজা আমার বাড়ীতে আসি। আমার বাড়ীর গোয়াল ঘরের মধ্যে মোটর সাইকেল, তিনটি পিস্তল এবং অব্যবহৃত ২০টি (আটকে যাওয়া গুলিসহ) গুলি রাখি। বিজয় ও হাসানকে বেলা অনুমান ১১.৩০ টার দিকে মোস্তার বাজারে নিয়ে অটোতে উঠিয়ে দেই। পরবর্তীতে টিভিতে সংবাদে জানতে পারি হোশি কুনিও মারা গিয়েছে। ঘটনার ৩/৪ দিন পর সাদ্দাম আমার বাড়ীতে এসে মোটরসাইকেল, অস্ত্র এবং গুলি নিয়ে যায়।

আমার পিতা-মাতা, স্ত্রী বা কেউ এই বিষয়ে জানতো না। তবে আমার বাড়ীতে মোটর সাইকেল ও লোকজন আসায় তারা রাগারাগি করতো।

পত্র পত্রিকায় হোশি কুনিও এর হত্যার বিষয়ে খবর পড়ে পরবর্তীতে জানতে পারি, যে সে পরবর্তীতে ইসলাম ধর্ম গ্রহন করেছিল। তখন আমার খারাপ লেগেছিল।

এই হত্যাকাণ্ডের পর গত ৮/১১/২০১৫ ইং তারিখে বাহই ধর্মালম্বী রুহুল আমিনকে হাসান সহ অজ্ঞাত দুইজন হত্যা করেছিল। তারা ঘটনার পর আমার নিকট পিস্তল রেখেছিল।

এছাড়াও গত ১০/১১/২০১৫ ইং তারিখের চৈতার মোড়ের ভন্ডপীর রহমতকে হত্যার সঙ্গে আমি, হাসান, বিজয়, সাদামসহ অজ্ঞাত একজন জড়িত ছিলাম। ঐদিন আমার নিকট থাকা পিস্তল, ছোড়া সাদামের নিকট দিয়ে দিয়েছিলাম।”

স্বাক্ষর/মোঃ মাসুদ রানা

স্বাক্ষর/অস্পষ্ট
০৭/১২/১৫
মোঃ শফিউল আলম
সিনিয়র জুডিসিয়াল ম্যাজিস্ট্রেট
(১ম শ্রেণীর ম্যাজিস্ট্রেট) রংপুর।

“In his confession, he stated that when he was a student he joined JMB, a militant organization and he was awarded a responsible position of Pirgachha Thana JMB for his good activities for JMB. He started his work with his associates and he disclosed names of 12 persons. Their manifesto was to establish Islam and to motivate person to Islam and to kill anybody if necessary. As per the directions of their high command, they made plan to kill foreigners in order to destabilize the country and accordingly they targeted deceased Hoshi Kunio, a Japanese national only because he was a foreigner; he was no way an

enemy of Islam. Accused Saddam selected the target of their killing mission. Saddam, Bijoy, Hasan, Ahsan Ullah Ansari alias Biplob and he made plan to kill Hoshi Kunio. Accordingly, they executed their killing operation. He was remorseful when he learnt from newspaper that Hoshi Kunio was converted to Islam.

Learned Senior Judicial Magistrate, who recorded confessional statement was examined as P.W. 47. He asserted that he had recorded confessional statements and maintained all legal formalities. The statements were read over and explained to the accused Masud Rana who signed and admitted the confessional statement to be correct. P.W. 47 denied the suggestions that there were many injuries on the body of Masud Rana or that he was sick when he gave confessional statement or that before recording confession the accused informed him about committed torture by police or that police was present with arms in the door of his chamber or that he did not record the statement correctly.

The learned Magistrate noted that he asked the accused at the time of recording the confession and signed a memorandum stating that those were voluntary and contained

true version of the occurrence. The recorded statement shows that P.W. 47 did not compel him to make confessional statement rather he gave assurance to him that if he decided not to make any confession even then he would not be sent to the police again before recording confessional statement. P.W. 47 was satisfied that the accused was not forced to make confession and he was threatened or no inducement was made or no promise was given to make such confessional statement and it also appears that the confessional statement was recorded in language of the confessing accused.

In these circumstances the observation made in the case of Dagdu and others vs. State of Maharashtra, (1977) 3 SCC, 68, is relevant. In that case it was observed:-

“50. Learned Counsel appearing for the State is right that the failure to comply with section 164(3) of the Criminal Procedure Code, or with the High Court Circulars will not render the confessions inadmissible in evidence. Relevancy and admissibility of evidence have to be determined in accordance with the provisions of the Evidence Act. Section 29 of that Act lays down that if a

confession is otherwise relevant it does not become irrelevant merely because, inter alia, the accused was not warned that he was not bound to make it and the evidence of it might be given against him. If, therefore, a confession does not violate any one of the conditions operative under Sections 24 to 28 of the Evidence Act, it will be admissible in evidence. But as in respect of any other admissible evidence, oral or documentary, so in the case of confessional statements which are otherwise admissible, the Court has still to consider whether they can be accepted as true. If the facts and circumstances surrounding the making of a confession appear to cast a doubt on the veracity or voluntariness of the confession, the Court may refuse to act upon the confession even if it is admissible in evidence. That shows how important it is for the Magistrate who records the confession to satisfy himself by appropriate questioning of the confessing accused, that the confession is true and voluntary. A strict and faithful compliance with section 164 of the Code and with the instructions issued by the High Court affords in a large measure the guarantee that the confession is

voluntary. The failure to observe the safeguards prescribed therein are in practice calculated to impair the evidentiary value of the confessional statements.”

When the Magistrate has recorded confession in accordance with law, the court shall presume the document is correct and the accused has also signed the confession. In that case a presumption of its correctness can legitimately be drawn in view of the provisions of section 80 of the Evidence Act, 1872.

Section 80 of the Evidence Act, 1872 provides provisions for general presumption of correctness as to the (a) genuineness of the confession as record of evidence against its maker, (b) the confession was duly taken, and (c) the confession as a document recorded by a learned Magistrate is genuine. Although section 80 of the Evidence Act, 1872 does not make a confession a conclusive proof of guilt against its maker, it carries substantive weight as genuine admission of guilt against its maker unless the presumption is rebutted by the defence by bringing and proving allegations of undue and coercive circumstances. The convict-Appellant in this case hopelessly failed bringing any evidence on record of the court below based

on which it can be suggested that true confessions are unreliable and unsafe to base a conviction of death sentence.

We are also quite heedful that convictions of this case are not based on mere confessions only. There are vital prosecution eyewitnesses namely Rickshaw puller Monnaf Mia (PW-9) and Abdulla Al Mamun (PW-11) these two eyewitnesses saw the episodes of killing victim Hoshi Kunio and they positively identified the convict-appellant in the court during their testimony. These two eyewitnesses evidences come to the aid of confessional statements of the convict appellant. This means that there as strong corroboration in material particulars of the prosecution case. The stories revealed from the confession of the convict-appellant is consistent with the prosecution case and are corroborated strongly by PW-9 and PW-11 in particular and PW-2, 4,14,15,16,17 & 18 generally. The confessional statements of the convict-appellant being consistent with the prosecution case, the same cannot be disregarded. Artilary & others Vs. The state, 18 BLT (2010)AD, 3 and Islam Uddin (Md.) Vs. The State 13 BLC(2008)AD, 81.

After the closure of recording of prosecution witnesses, the accused Masud Rana was examined under section 342 of the Code of Criminal Procedure. In his examination, he stated that police arrested him on 23.11.2015 and he was subjected to inhuman torture in a particular way so that no mark of injury was seen. He was taken on remand on 25.11.2015 and again subjected to torture and asked him to admit the occurrence. He was taken on remand second time for eight days. He was again tortured. He stated that he was not allowed to drink water and also not allowed to sleep. Consequently, his brain was not working properly and he gave confessional statement under section 164 of the Code of Criminal Procedure. Considering his statement under section 342 of the Code and the deposition of the learned Magistrate, it appears that no injury was found in the body of the accused Masud Rana and his belated complain that he was tortured cannot be acceptable. This view is taken in Zamir and others Vs. The state 30BLT(AD),25 provides that:-

“It is well settled that the confessional statement should be retracted at the very earliest opportunity and the belated retraction of confessional statement during

examination under section 342 had of no value is it appears before the court that the confessional statement was made voluntarily and it was true. This view was taken by this Division in The State Vs. Lalu Miah and another, 39 DLR(AD)(1987)117” “Retraction of a confession at an earliest opportunity may lead support to the defence plea that the confession was not voluntary one, but from a belated retraction of a confession no inference adverse to the accuser can be made”

We found that the confession of the convict Masud Rana is so natural and spontaneous that no one cannot harbour any doubt about its voluntariness.

Next point need to be determined is whether the post mortem report is inconsistent with confessional statement of the accused Masud Rana. It appears from the post mortem report that the doctor (PW 37) found following injuries:

(I) one gun-shot wound found over the root of neck (rt side) at supraclavicular, region 1.5 X ¾ inches X cavity depth. Oval shaped margins-lacerated, blackening inverted.

(II) One circular gun-shot wound found over the front of lower chest- $\frac{1}{2}$ inch diameter, Margins-lacerated, inverted & blackened.

(III) One gun-shot-wound over the dorso lateral aspect of rt hand just below wrist joint 1.1 inch X 1" X bone depth.

(IV) One lacerated injury over the base of palmer aspect of ring finger (RT)-e-fracture of underlying bone.

(V) Two abrasions on each of lateral aspect of knee joint.

(VI) one exit wound over the upper part of back Lt. to midline medial to the Lt. scapula $\frac{3}{4}$ inch X $\frac{1}{2}$ " X chest cavity with bleeding with margins everted.

(VII) One circular exit wound of $\frac{1}{2}$ " in diameter with bleeding margins everted over lower part of back (lt side).

(VIII) One lacerated wound over the palmer aspects of rt. hand.

In the confession, accused Masud Rana stated that he was the first to shoot at the left side of the neck of the victim. But the Injury No. 1 that one gunshot wound found over the root of neck right side. The learned trial court found that gunshot injuries found over the root of right neck, over the front of lower chest. 'Lower part right side of the neck' and 'right' shoulder below the neck' are almost of the same meaning. On dissection, thoracic vertebrae (1, 2)-e-corresponding ribs were seen fractured at right side. Great vessels-e-neck structures

were seen injured at right side. Base of 2nd metacarpal & carpal from (Rt) were found fractured. There is no doubt that post mortem report of victim corresponds and corroborates with confessional statement of Masud Rana. Moreover, even if some inconsistency between confessional statement and post mortem report will not be an impediment to prove the case beyond reasonable doubt. In these circumstances we can also consider Rafiqul Islam Sheikh vs State reported in 74DLR(AD),251, It was held:

“In the instant case there is some inconsistency between confessional statements and post-mortem report of the victim regarding the manner of killing. But this inconsistency does not create any doubt for the prosecution to prove its case as because the surrounding circumstances coupled with confessional statements made by the condemned prisoners made them guilty in the case, thus, the inconsistency between post-mortem report and confessional

statements will not make any hindrance to establish the case for the prosecution.”

In this case, the Investigating officer did not arrange identification parade because accused Masud Rana gave true and voluntary confessional statement under section 164 of the Code which is consistent with the prosecution story. The witness nos. 9 and 11 never met the accused before and they for the first time identified Masud Rana on the dock. In the case of State Vs. Lalu Mia, 39DLR(AD)117, it was held:

“the witness did not know the accused Lalu from before. Identification of Lalu at the court by these two witnesses for the first time without being preceded by T.I. parade can not be acted upon to convict the accused. In this circumstances their Lordships considered the case of Budhesen and another Vs State of UP, AIR 1970 SC 1321. In that case, it was held.”

The evidence of mere identification of the accused person at trial for the first time is from its very nature inherently of a weak character.

In Rameshwer Singh Vs. State of Jammu and Kashmir, AIR, 1972, SC, 102 (104) it was held:

“the substantive evidence of a witness is his evidence in court when the accused person is not previously known to the witness concerned then identification of the accused by the witness soon after the former’s arrest is of vital importance because it furnishes to the investigating agency an assurance that investigation is proceeding on right lines in addition to furnishing corroboration of the evidence to be given by the witness later in court at the trial. From this point of view it is a matter of great importance both for the investigating agency and for the accused and a fortiori for the proper administration of justice that such identification is held without avoidable and unreasonable delay after the arrest of the accused and that all the necessary precautions and safeguards are effectively taken so that the investigation proceeds on correct lines for punishing the real culprit. It would, in addition, be fair to the witness concerned who was a stranger to the

accused because in that event the chances of his memory fading are reduced and he is required to identify the alleged culprit at the earliest possible opportunity after the occurrence.”

We have carefully considered the cases discussed above and we find that the above mentioned cases do not apply in this case because of the facts that the dock identifications are not made in isolation only. It is other evident that the PWs statements were recorded by the learned Senior Judicial Magistrate soon after the killing mission and the PWs without any hesitation mentioned the facts of killing the victim and that this aspect of the PWs statements under section 164 of the Code of Criminal Procedure come to the aid of court Dock identification.

In the case of Manu Sharma vs. Sate (NCT of Delhi),(2010), 6 SCC, 1, it was observed:

“It is trite to say that the substantive evidence is the evidence of identification in court. Apart from the clear provisions of 9 of the Evidence Act, the position in law is well settled by a catena of decisions of this Court. The

facts, which establish the identity of the accused persons, are relevant under Section 9 of the Evidence Act. As a general rule, the substantive evidence of a witness is the statement made in court. The evidence of mere identification of the accused person at the trial for the first time is from its very nature inherently of a weak character. The purpose of a prior test identification, therefore, is to test and strengthen the trustworthiness of that evidence. It is, accordingly, considered a safe rule of prudence to generally look for corroboration of the sworn testimony of witnesses in court as to the identity of the accused who are strangers to them, in the form of earlier identification proceedings. This rule of prudence, however, is subject to exceptions, when, for example, the court is impressed by a particular witness on whose testimony it can safely rely, without such or other corroboration. The identification parades belong to the stage of investigation, and there is no provision in the Code which obliges the investigating agency to hold or confers a right upon the accused to claim a test identification parade. They do not constitute substantive evidence and these

parades are essentially governed by Section 162 of the Code. Failure to hold a test identification parade would not make inadmissible the evidence of identification in court. The weight to be attached to such identification should be a matter for the courts of fact. In appropriate cases it may accept the evidence of identification even without insisting on corroboration.

In *Jana Yadav vs. State of Bihar*, (2002) 7 SCC 295 at para 38, the following conclusion is relevant:

“Failure to hold test identification parade does not make the evidence of identification in court inadmissible, rather the same is very much admissible in law, but ordinarily identification of an accused by a witness for the first time in court should not form the basis of conviction, the same being from its very nature inherently of a weak character unless it is corroborated by his previous identification in the test identification parade or any other evidence. The previous identification in the test identification parade is a check valve to the evidence of

identification in court of an accused by a witness and the same is a rule of prudence and not law.”

It is clear that identification of accused persons by witness on dock for the first time though permissible but cannot be given credence without further corroborative evidence. Though some of the witnesses identified some of the accused on the dock as mentioned above without corroborative evidence the identification on dock alone cannot be treated as substantial evidence.

In the case in hand P.W.9 and 11 identified the accused and their identification is also corroborated by their statements under section 164 of the Code of Criminal Procedure. They made the statements immediately after the occurrence. Both of them narrated the incident in unison and their versions of case are almost same. P.W. 4 Mst. Anowara Begum saw two accused participated in the killing Hoshi Kunio. P.W. 8 Md. Maidul Islam alias Murad saw the three accused were fleeing away by motor cycle from the place of occurrence. He also gave his statement under section 164 of the Code of Criminal Procedure. P.W. 9 rickshaw puller Md. Monnaf Mia is an an eye witness of the

occurrence. He narrated the facts and circumstances in details. He identified Masud Rana on the dock. P.W. 11 Abdullah Al Mamun is also an eye witness of the occurrence and he saw 3 accused persons at the place of occurrence. He identified accused Masud Rana on the dock. P.W. 16 Md. Abdul Aziz is owner of the house rented by the accused. He identified 5 accused on the dock. As regards failure to held test identification on parade of P.W.9 and P.W.11 would not make inadmissible the evidence of identification in court.

The learned Advocate Sk Faruque Hossain appearing on behalf of Shakhawat Hossain alias Shafique submitted that the accused was named as Shakhawat Hossain but he was never known as Shafique. The accused Shakhawat Hossain did not make any confession. Accused Liton in his confession disclosed the name of one Shafique but did not mention Shakhawat Hossain. No other co-accused implicated Shafique in their confession. To prove the defence case Md. A. Mozid Mondol, member of the Union Porished was examined as D.W. 1. He stated that Shakhawat had no name like Shafique. In support of his contention he proved a certificate signed by himself,

Chairman and Female member of Holdia Union Parishad, Saghata, Gaibandha.

The learned Additional Attorney General Sk Mohammad Morshed submitted that Mohammad A. Aziz Mondol proved a certificate which was computer composed. The certificate was not issued in a letter of the Holdia Union Parishad, even the name of the chairman was not properly sealed in the said certificate. The learned Additional Attorney General also submitted that D.W. 1 also stated that he could not give guarantee that Shakhawat was not involved in any anti state activity. When the court asked him whether he had any idea about the allegation in the present case against Shakhawat, he said, he heard Shakhawat was involved with the militant organization.

The learned Deputy Attorney General Mr. Boshir Ahmed submitted that such member of the militant organization have several names. In this circumstances he referred to deposition of P.W. 16 who was owner of the rented house, where all the accused resided. He identified 5(five) accused persons on the dock who lived in his house. P.W. 17 is auto seller and he

testified that accused persons present on the dock went to his shop along with one who purchased an auto ricksha.

On perusal of the records and all others material evidence it appears that the confessional statement of the accused Liton Mia which runs as follows:

“আমি প্রাথমিক বিদ্যালয়ের পর ৬ষ্ঠ শ্রেণীতে তরফ সরতাজ ফাজিল মাদ্রাসায় পড়ি। আমার ব্যবহৃত মোবাইল নং ০১৭৯৪১৯৮৩২৯।

আমি ছোট বেলা থেকে নামাজ পড়াকালে আমার প্রতিবেশি চাচা রেজ্জাক কোরআন হাদিসের কথা শোনাতো। তিনি তিন বৎসর আগে আমার সাথে বাদলের পরিচয় করিয়ে দেয়। প্রায় এক বৎসর কোরআন হাদিসের কথা শোনার পর আমি জে. এম. বি তে যোগদান করি। আমি আগে সমর্থক থাকলেও বর্তমান সদস্য হয়েছি।

আমাদের বাড়ীতে সুদের লেনদেন হওয়ায় ইবাদত কবুল হবেনা উল্লেখে আমাকে বাড়ী হতে বের হতে বলে বাদল । গত রমজানের ঈদের ১৫ দিন পর গত ০৩/০৮/২০১৫ ইং কি ০৪/০৮/২০১৫ ইং তারিখের দিকে আমি বাদলের কথামত ঢাকায় গার্মেন্টসে চাকরী করার কথা বলে বাড়ী হতে বের হয়ে বাদলের (ছেঁড়া) দুপুর অনুমান ১২.০০ টার দিকে বগুড়ার চারমাথায় এসে তার সাথে দেখা করি। বাদল আমাকে সেখান থেকে গোবিন্দগঞ্জ গরুর হাটে নিয়ে যায়। সেখানে রাজিব, সাদ্দাম ও রাহুল ও হাসানের সাথে পরিচয় হয়। বাদল আমাকে রাজিবের কথামত চলতে বলে। রাজিব আমাকে রাহুল ও হাসানের সাথে রংপুর পাঠিয়ে দেয় এবং সাদ্দাম ও রাহুলের কথামত চলতে বলে। আমি, সাদ্দাম ও রাহুল ও হাসানের সাথে

রংপুরস্থ ছোট নুরপুরে সাদ্দাম হে রাহুলের ভাড়া করা বাসায় উঠি। বাসার মালিকের নাম আঃ আজিজ।

ঐ বাসায় রাহুল হে সাদ্দাম আমাকে বিজয় ও সফিক এর সাথে পরিচয় করিয়ে দেয়। ঐ বাসায় আমি, সাদ্দাম হে রাহুল, হাসান, বিজয় সফিক এবং সফিকের স্ত্রী থাকতাম। সফিকের স্ত্রী আমাদের রান্না করে দিত। সেখানেই কোরআন ও হাদীসের উপর আলোচনা হতো।

সাদ্দাম হে রাহুল এর প্রায় একমাস পর আমাদের একটি ব্যাটারী চালিত অটোরিক্সা কিনে দেয় এবং আমাদের পর্যায়ক্রমে চালাতে বলে। আমরা দুইজন করে পালাক্রমে রংপুর শহরে অটোরিক্সা চালাতাম এবং রংপুর শহরের রাস্তাঘাট চিনে নিতাম। আমাদের বাসায় রাজিব ও নয়ন মাঝে মধ্যে আসতো। রাজিব আমাদের জে. এম. বির সাংগঠনিক বিষয় নিয়ে আলোচনা করতো।

দেড় মাস পর সফিকের স্ত্রী চলে গেলে সাদ্দাম হে রাহুলের স্ত্রী এসে আমাদের রান্না করে দিত। ১০/১২ দিন পর সাদ্দাম হে রাহুলের স্ত্রী চলে গেলে হাসানের স্ত্রী তার সন্তানসহ আসে এবং আমাদের রান্না করে খাওয়ায়। রাহুল হে সাদ্দাম অবসরে বাসায় আমাদের কোরআন ও হাদীস নিয়ে আলোচনা করতো এবং ইসলামের বিরুদ্ধে যারা কাজ করে তাদের খতম করার কথা বলতো। বিভিন্ন দেশে মুসলমানদের উপর আমেরিকা মুসলমানদের হত্যা করায় আমেরিকা ও বিদেশীদের খতম করতে জিহাদের কথা বলে। আমরা বিদেশে যেতে চাইলে সাদ্দাম হে রাহুল বলে বিদেশীদের মারতে দেশের বাইরে যেতে হবেনা এদেশেই বিদেশীরা আছে।

জাপানী নাগরিক হোসি কোনিওকে হত্যার ১০/১৫ দিন আগে সাদ্দাম হে রাহুল আমাদের সকলের সঙ্গে পরামর্শ করে পরিকল্পনা করে। সে আমাদের জানায় মুন্সী পাড়ায় এক বিদেশী থাকে, সে কাচু আলুটারী গ্রামে জমিতে যায়। তাকে

হত্যা করতে হবে। সে মতে সাদাম, বিজয় হাসান ও সফিক জাপানী নাগরিকের বাড়ী হতে কাঁচু আলুটারী গ্রামের জমি পর্যন্ত রেকি করে। সাদাম ২৩ রাহুলের পরিকল্পনা মতে ০৩/১০/২০১৫ ইং এ সকাল ৮.০০-৮.৩০ টার দিকে সফিক খবর দেয় ঐ জাপানী তার বাসা হতে বের হয়েছে। তখন হাসান ও বিজয় মোটর সাইকেল নিয়ে বের হয়ে যায়। আমি তখন অটো নিয়ে শহরে বের হই। সফিক বাসায় থেকে যায়। আমি দুপুরে বাসায় এসে বিজয় ও হাসানের নিকট জানতে পারি, তাকে তারা হত্যা করেছে।”

স্বাক্ষর/ মোঃ লিটন মিয়া

স্বাক্ষর/ অস্পষ্ট

২১/০১/২০১৬

মোঃ সফিউল আলম

সিনিয়র

জুডিসিয়াল

ম্যাজিস্ট্রেট (১ম শ্রেণীর

ম্যাজিস্ট্রেট) রংপুর।

It appears from confessional statement of Liton Mia that the accused Sakhawat Hossain alias Shafique was an active member of JMB and he was also an active participant of conspiracy of plan for killing Hoshi Kunio and he abetted the offence. The confessional statement of Liton Mia is corroborated by P.W.16, house owner where all the accused were living before killing Hoshi Kunio. P.W. 16 identified all the accused on dock and he also deposed that Shakhawat Hossain alias Shafique and his wife and children lived in his house. P.W. 17 Md. Joshim Uddin also identified all the accused on dock. The

defence tried to prove Shakhawat Hossain had no other name particularly Shafique. The confessional statement of Liton Mia incriminated Shafique in the case. The accused produced a certificate signed by a member of Holdia Union Parishad Md. A. Mozid Mondol to prove that Shakhawat Hossain had no other name like Shafique. We found the substance in the submission of learned Additional Attorney General that the certificate was false and fabricated. We also found substance in the submission of learned Deputy Attorney General that a member of militant organization have several names. That the defence failed to prove that Shakhawat Hossain had no name like Shafique. On the other hand, confession of Liton Mia is true and voluntary. We find that Shakhawat Hossain alias Shofique had been actively participated in the conspiracy and plan for killing Hoshi Kunio and he abetted the killing.

The learned Advocate Mr. Sk Faruque Hossain on behalf of Md. Ahasanulla Ansary @ Biblob submitted that co-accused Masud Rana implicated him in his confession. The learned Advocate also submitted that convict Md. Ahasanullah Ansary @ Biblob had been absconding since the date of occurrence. He

submitted that mere absconding was not a conclusive evidence of his guilt. In this regard he referred to the case of The State Vs. Md. Shafiqul Islam, 43,DLR(AD), 92. He further submitted that the trial against convict Md. Ahasanullah Ansary held in absentia. The procedure for holding trial of an absconding accused was not followed in compliance of the provision of section 339B of the Code of Criminal Procedure. Though paper Notification was published on 17.10.2016, but the Notification was not properly published.

The learned Deputy Attorney General submitted that convict Md. Ahsanullah Ansery @ Biblob was one of mastermind of the killing of Hoshi Kunio. In the confession of Masud Rana it was narrated that convict Md. Ahsanullah Ansary @ Biblop was one of the accused had involved in the planning and he abetted the killing of Hoshi Kunio. The learned Deputy Attorney General also submitted that the confession of Masud Rana was inculpatory in nature and accused Md. Ahsanullah Ansary @Biblop was rightly convicted under section 302/34 of the Penal Code.

On perusal of the records it appears that Md. Ahsanullah Ansary @Biblop was one of the accused involved in the planning to kill Hoshi Kunio and he was patrolling on the road to facilitate Masud Rana, Bijoy and Hasan's safe movement before and after the killing mission of the victim Hoshi Kunio.

The learned Advocate Sk Faruque Hossain on behalf of Faruk Hossain @ Liton Mia @ Rafique submitted that confession of convict Liton Mia was not true and voluntary. He further submitted that convict Liton Mia gave confessional statement and implicated himself in the occurrence but no other co-accused implicated him. He also submitted that his confession was not corroborated by the confession of other co-accused and evidence of witnesses. In the confession Masud Rana stated that he himself, Saddam, Bejoy, Hasan, Ansary, Biblop took the decision and planned to kill Hoshi Kunio but he did not implicate Faruk Hossain @ Liton Mia @ Rafique. The learned advocate submitted that in the confession Liton Mia stated that accused Saddam @ Ruhul along with Liton Miah planned to kill Hoshi Kunio. The said Saddam @ Rahul died in a gun fight. Therefore,

it was not proved the involvement of Liton Miah in the killing of Hoshi Kunio.

The learned Deputy Attorney General Mr. Boshir Ahmed submitted that the confession of Liton Miah was true and voluntary. He also submitted that the learned advocate of the Liton Mia in the Trial Court admitted the confession was true and voluntary. The learned Judge of the court also found that the confession of Liton Mia was true and voluntary.

On perusal of the record, it appears that the learned advocate of convict Liton Mia in trial court admitted the confession recorded under section 164 of the Code was true and voluntary. But he claimed that his confession alone was not sufficient to prove his involvement in the killing of the deceased. We found that killing Hoshi Kunio was done in consequence of conspiracy and Liton Miah was one of the conspirator and thus he abetted in the killing of Hoshi Kunio. Therefore, he was rightly found guilty and was liable to be punished for the killing.

Mr. Md. Ahsanullah, learned advocate also appearing on behalf of Isahaque Ali submitted that Isahaque Ali in his confession stated that he supplied arms on 08.11.2015 and

miscreants had killed Hoshi Kunio on 03.10.2015. In this case, it is almost impossible to kill the victim by the supplied arms. Learned advocate also submitted that convict Masud Rana, according to his confessional statement was president of Pirgasa Thana JMB and he was working with Arshed Ali, Kashem Ali, Mahedi Hasan, Abdul Aziz, Isahaque Ali, Raihan, Md. Arefin, Saddam @ Rahul, Sayed, Saju, Anarul and Chandu. Masud Rana in his confession narrated that he, Saddam, Bejoy, Hasan and Ansary had planned to kill the victim. Sayed was also co-accused but he was acquitted. Md. Isahaque Ali was on the same footing.

The learned Additional Attorney General Sk Mohammad Morshed on the other hand, argued that a single transaction could not be considered. He also submitted that confessional statement of accused Masud Rana and that of Isahaque Ali were corroborative with each other. The learned Additional Attorney General Sk Mohammad Morshed further submitted that the acquitted accused Sayed was never living in the rented house situated in Rangpur town. The learned Additional Attorney General referred to the case of Mufti Hannan vs. State reported in 69DLR (AD) 490. In that case Mufti Hannan supplied grenade

which was detonated by Repon. Therefore, the acts of Mufti Hannan attracted offence of abetment for murder punishable under section 302/109 of the Penal Code.

The learned Deputy Attorney General Boshir Ahmed submitted that all the accused were present when Md. Zoshim Uddin, P.W. 17 sold the old auto and he identified all accused on the dock. P.W. 18 Md. A. Jalal who was a garage owner and charged the auto and he identified Isahaque Ali and Liton Mia on the dock.

On perusal of the records and all others material evidence it appears that the confessional statement of the accused Ishaque Ali which runs as follows:

“আমি পঞ্চম শ্রেণী পর্যন্ত লেখাপড়া করি। আমি জে,এম,বি বা ছাত্র শিবির বুঝিনা তবে আমি মসজিদে হাদীস কোরআনের আলোচনা শুনতাম। আমি মাসুদ রানা, আব্দুর রহমান @ চান্দু, কাশেম, এরশাদ, মেহেদী সহ একত্রে আলোচনা শুনতাম। কিন্তু আমি জে,এম,বি এর কোন কার্যকলাপে জড়িত ছিলাম না। তবে আমি জানতাম, তারা বোমা বাজি, খুন খারাবী করতো। আমি ০১৭৩৭৯৩৩৯৬১ নং মোবাইল নম্বরটি ব্যবহার করি। গত ০৮/১১/১৫ ইং এ মাসুদ রানা আমাকে সকাল ৬.০০ টার দিকে মোবাইল দিয়ে আমাকে বাড়ীতে থাকতে বলে। সেদিন আমাদের বাড়ীতে কেউ ছিলনা। সকাল ১০.০০ টার দিকে মাসুদ রানা আমার বাড়ীতে বাই-সাইকেলে আসে। সে আমাকে একটি বাজারের ব্যাগে করে কাপড়ে মোড়ানো তিনটি পিস্তল রাখতে বলে। আমি তা পাতিলে করে গোপনে আমার ঘরের ছাঁদে রেখে দেই।

মাসুদ রানা ঐ দিন বিকাল ৪.০০ টায় আমাকে ফোন দিয়ে বাড়ীতে থাকতে বলে এবং দুইটি বড় ছোড়া কাপড়ে পৈচিয়ে নিয়ে এসে আমার

কাছে রাখতে বলে সে চলে যায়। সে আমাকে আরো বলে, আব্দুর রহমান হে চান্দু চাকু ধার দেয়ার জন্য আসবে, আমি যেন ব্যবস্থা করি। আমি আপত্তি করলেও পরে তার চাপে আর কিছু বলতে পারি নাই। এই ঘটনার আধা ঘন্টা পর আব্দুর রহমান হে চান্দু বাই সাইকেল যোগে সিরিজ কাগজ নিয়ে আসে। আমি তাকে চাকু দুটি দিয়ে আমি আমার শ্বশুর বাড়ীতে খেতে যাই।

পরবর্তীতে মাসুদ রানা আমাকে মোবাইল করে বলে। পালিশ করা গুলো লাগবেনা। পালিশ ছাড়া গুলো নিয়ে বাড়ীর গেটে দাঁড়াও। তখন রাত্রী অনুমান ৮.০০ কি ৮.১৫ ঘটিকা।

আমি তখন আমার বাড়ীতে ফিরে এসে দেখি বাড়ীতে চান্দু নাই এবং ছোড়াগুলোও নাই। মাসুদ রানা মোবাইল করার ১০/১৫ মিনিট পর মোটর সাইকেল এ করে আমার বাড়ীর গেটের সামনে নামে ও মোটর সাইকেল একটু সামনে পূর্ব পার্শ্ব গিয়ে দাঁড়ায়। মাসুদ রানা আমার নিকট হতে তিনটি পিস্তল যা বাজারের ব্যাগে ছিল তা নিয়ে পূর্ব দিকে চলে যায়।

আমি এই ঘটনার ৩/৪ দিন পর জাপানী হত্যা এবং অপর একজনকে জবাই করার বিষয় লোকমুখে এবং খবরে জানতে পেরে আমি মাসুদ রানা এবং চান্দুকে জিজ্ঞাসা করলে তারা এই কাজ সমূহ করেছে মর্মে স্বীকার করেছিল।”

স্বাক্ষর/মোঃ এছাহাক আলী

স্বাক্ষর/অস্পষ্ট
১৪/১২/১৫
মোঃ শফিউল আলম
সিনিয়র জুডিসিয়াল ম্যাজিস্ট্রেট
(১ম শ্রেণীর ম্যাজিস্ট্রেট) রংপুর।

On perusal of the confession of Ishaque Ali it appears that he used to listen discussion of the Quran and Hadis along with accused Masud Rana, Abdur Rahman @ Chandu Kashem, Arshed and Mehedi. Attending the discussion cannot readily incriminate him in the killing. The accused Isahaque Ali also narrated that he was not involved with JMB which was a

proscribed/banned organization. In the confession, accused Isahaque Ali further stated that he lived in another house. We carefully scrutinized the original confessional statement of Isahaque Ali and found that the date of supply of Arms to the convict Masud Rana was on 08.11.2015 but Hoshi Kunio was killed on 03.10.2015. The contradicting facts reveal that it is not at all realistic to kill victim Hoshi Kunio on 03.10.2015 by the weapon supplied on 08.11.2015, which means guns supplied after 1(one) month and 5 days after the date of killing. Therefore, Mufti Hannan case has not attracted in the present case because Md. Isahaque Ali supplied the arms after the killing of Hoshi Kunio. In view of the discussion made above, we are of the view that the prosecution hopelessly failed to prove the charge brought against the accused Md. Isahaque Ali.

The learned advocate Mr. Md. Ahsanullah and Mr. Sk Faruque Hossain humbly urged to convert the death sentence to life imprisonment of convict appellant namely (1) Md. Masud Rana @ Mamun @ Mantari, (2) Md. Sakhawat Hossain @ Shafique, (3) Md. Ahsan Ullah Ansari @ Biplob and (4) Md. Liton Mia @ Rafique.

In the case of Kamal alias Exol Kamal vs. The state 10,SCOB,(2018), AD, 6, it was observed:

“On the question of commutation of the sentence, we are to take into consideration the heinousness of the offence committed in juxtaposition with the mitigating circumstances. It is by now established that in Bangladesh the sentence for the offence of murder is death which may be reduced to one of imprisonment of life upon giving reasons. It has been the practice of this Court to commute the sentence of death to one of imprisonment for life where certain specific circumstances exist, such as the age of the accused, the criminal history of the accused, the likelihood of the offence being repeated and the length of period spent in the death cell.”

In the facts and circumstances of the instant case, we cannot ignore the fact that the victim was repeatedly shot from close range. Several bullet injuries were found on the body of the victim, which is an apparent indication of the intention of the convict appellants to cause death of victim Hoshi Kunio.

We must not be oblivion of the facts that the convicti-appellants namely Masud Rana, Md. Sakhawat Hossain, Md.

Liton Mia and Md. Ahsanullah Ansary were all actively involved in criminal militant enterprise under the criminal Militant umbrella namely JMB (Jamaat-UI-Mujahedeen Bangladesh) to carry out their criminal activities. These convict-appellants used the name of Islam as a perfect disguise to distort the people and the law enforcement agencies as to facilitate their criminal enterprises. The convict-appellants also made clear attempts to outrage international relations of Bangladesh with its development partners including Japan in the name of Islam.

We find that these are aggravating factors that cannot be ruled out under any circumstances and these aggravating strenuously suggest that these convict-appellants cannot be shown mercy, and, as such prayer for conviction death sentence to that of life imprisonment in respect of these convict-appellants is unworthy of any consideration.

In the case of Md. Iftexhar Hasan @ Al Mamun vs. The State, 27BLD(AD)85, it was held:

“Islam is a religion of peace. It is derived from the word “Salam” meaning peace. Using the holy name of Islam, the petitioners have engaged in a wild mad struggle jeopardizing the Law and Order of the country

resulting in killing of innocent people as has been done in the present case of tailing the two Judges. Does Islam permit killing of such innocent persons? Is it the job of the Judges to legislate Islamic Law in Bangladesh? Is there even any allegation against them of murdering any other persons or any adversary or being themselves Murtad? Islam does not encourage use of force, in the matter of religion. The way the petitioners resorted to outrageous atrocities in the name of Islam killing innocent persons has been prohibited clearly in Islam. The Quran says, whosoever killed a human being for other than manslaughter or corruption in the earth, it shall be as if he had killed all mankind, and whose saved the life of one, it shall be as if he had saved the life of all mankind "Surat 5: Al Maidah: 32. The facts disclosed in the case revealed the conspiracy made by the petitioners in committing horrible offence of creating Law and Order situation in the country and killing innocent persons one after another and as such they are traumatic threat to the survival of the social Order. The activities of the petitioners are undoubtedly premeditated, cold blooded and deliverate, backed by

persistent ferocity and as such their elimination from the society is the only solution to preserve and protect the existing norms and thus the only proper sentence to be passed against them is one of death. Hence we find that the learned Additional Sessions Judge has rightly sentenced all the petitioners to death and the High Court Division in its turn considering the facts and circumstances came to correct decision in accepting the Death Reference and as such we do not find any reason to interfere or decided otherwise. All the petitioners are accordingly dismissed.”

Now, we would like to bring into the light of one important aspect of failure of the convict-Appellants in their cross-examination. We have carefully noted from the trends of cross-examination of the convict-appellants that principal defence case was that most of the PWs never knew the convict-appellants earlier and that most of the PWs saw them for the first time at the place of occurrence at the material point of time, and as such it was necessary for the prosecution to ensure the unmistakable identity by recourse to the Test Identification

Parade(TI Parade) which the prosecution failed to prove. In other words, the PWs dock identification was weak and reasonable doubtful in nature which ought not to have been relied upon by the learned Judge of the Trial Court below. But, we have carefully noted from the trends of the cross-examinations of the convict-appellants made any suggestion that they were not present at the place of occurrence at the material point of time. But then again, it is the persistent and consistent evidence of the PWs that the convict-Appellants were present at the material point of time at the place of occurrence. This failure of the convict-Appellants in their cross-examinations is not to deny their presence at the place of occurrence at the material point time means that the convict-appellants in effect admitted their presence at the place of occurrence at the material point of time. But, they raised question as to the quality of dock identification in absence of TI parade and we do not believe that the absence of TI Parade destroys probative value of the dock identification which was made before the Trial Court below on oath.

It is also settled principle of our Appellate Court that the confession of co-accused admitted in evidence is good and

trustworthy evidence against another co-accused, whether confessing or non-confessing, if the confession is found true and voluntary and is corroborated by any other evidence such as hearsay, circumstantial or eye-witness, and this is the conclusion of our Apex Court as contained in Md. Shukur Ali and others Vs. The state, 16, SCOB,(2022), AD,62. We find principle of this case applicable in the instant case. We find that the confessions are corroborated by the eye-witnesses (PW-9 and PW-11) testimonies and their statements under section 164 of the Code along with other prosecution witnesses and proved the case against the convict appellants beyond reasonable doubt.

Having considered the facts and circumstances of the case, this court is led to conclusion that the learned trial Judge was perfectly Justified in convicting and sentencing condemned prisoner (1) Masud Rana @ Mamun @ Mantri, (2) Md. Sakhawat Hossain @ Shafique, (3) Md. Liton Mia @ Rafique and (4) Md. Ahsanullah Ansari @ Biplob to death. The impugned Judgment and order of conviction and sentence dated 28.02.2017 passed by the learned Special Sessions Judge, Rangpur with regard to the aforesaid convicts in Sessions Case

No. 982 of 2016 arising out of G.R. No. 201 of 2015(Kaunia) corresponding to Kaunia Police Station Case No. 04 dated 03.10.2015 is hereby upheld and confirmed. Accordingly, this reference so far relates to (1) Masud Rana @ Mamun @Mantri (2) Md. Shakwat Hossain @ Shafique (3) Md. Liton Miah @ Rafique and (4) Md. Ahsanullah Ansari @ Biplob is accepted.

Thus, the Criminal Appeal No. 2720 of 2017 and Jail Appeal No. 110 of 2017 and Jail Appeal No. 111 of 2017 and Jail Appeal No. 112 of 2017 are dismissed.

Considering the facts and circumstances of the case, It is our reasoned view as mentioned earlier in this Judgment, that the conviction of the condemned prisoner Md. Isahaque Ali should not be sustained and the charge leveled against him has not been proved beyond all reasonable doubt. The impugned Judgment and order of conviction and sentence, so far relates to the condemned prisoner Md. Isahaque Ali is hereby set-aside. The condemned prisoner Md. Isahaque Ali, son of Moyez Uddin, Mother Dalimon Begum of village-Pashna Tangail para, Police Station Pirgonj, District-Rangpur is acquitted of the charge. Thus the criminal appeal being no. 2750 of 2017 preferred by the condemned prisoner Md. Isahaque Ali is

allowed and consequently the Jail Appeal No. 113 of 2017 filed by him is allowed. Condemned prisoner Md. Isahaque Ali be released forthwith if not wanted in any other case.

Let the lower court records along with a copy of this judgment be sent down at once.

Md. Mostafizur Rahman, J

I agree